

PUBLIC VERSION

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

**COMPLAINANTS' MOTION IN *LIMINE* NO. 1 TO PRECLUDE TESTIMONY ON
ECONOMIC DOMESTIC INDUSTRY**

Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Samsung” or “Complainants”) respectfully move in *limine* to preclude Respondents Ouraring Inc. and Oura Health Oy’s (collectively, “Oura” or “Respondents”) economic expert, John Jarosz, from testifying regarding the economic prong of the domestic industry requirement because such testimony will not “assist the trier of fact,” given that he repeatedly admitted that he did not understand Samsung’s financial data.

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, counsel for Complainants certify that they made reasonable, good-faith efforts to resolve this matter with Respondents before filing this motion. Samsung sent its motion *in limine* topics to Oura on August 20, 2026, and met and conferred on those topics on August 24, 2026. Respondents oppose this motion.

I. INTRODUCTION

Mr. Jarosz, the economic expert Oura proffers in this investigation, submitted a rebuttal report on June 26, 2026 purporting to criticize the analysis performed by Complainants’ economic

[REDACTED]

expert, Ms. Julia Rowe, regarding the economic prong of the domestic industry requirement. During Mr. Jarosz's July 2, 2026 deposition, he repeatedly asserted that he did not understand the very financial data he purported to analyze in his rebuttal report. That deficiency is fatal under Federal Rule of Evidence 702 and on that basis, Mr. Jarosz should not be permitted to offer opinions regarding Samsung's economic domestic industry. Allowing Mr. Jarosz to testify about data he admits he does not understand, especially when he does not dispute the reliability of that data or even that Samsung has a domestic industry, will not assist the ALJ in resolving any genuine dispute between the parties. *See* Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 28:17-20 ("Q. Is it your opinion that Samsung has no domestic industry in this case? A. No, I don't think I've drawn that specific opinion...."). Rather, his opinions would offer only unsupported and unreliable criticism of Ms. Rowe's analysis based on records Mr. Jarosz concedes he does not understand. Accordingly, Complainants respectfully request that the ALJ preclude Mr. Jarosz from offering any opinion regarding Samsung's economic domestic industry at the hearing.

II. LEGAL STANDARDS

Expert testimony is only admissible to the extent it may assist the trier of fact. *Certain Foodservice Equipment And Components Thereof*, Inv. No. 337-TA-1166, Order No. 33, 2020 WL 2094138 at *2 (Apr. 16, 2020) (citing Federal Rule of Evidence 702). Federal Rule of Evidence 702 provides that an expert witness may testify regarding their opinions **only if**, among other requirements, "the expert's scientific, technical, or other specialized knowledge will help the trier of fact to understand the evidence or to determine a fact in issue." Fed. R. Evid. 702. Accordingly, "judicial gatekeeping is essential to ensure an expert's conclusions do not go beyond what the expert's basis and methodology may reliably support." *EcoFactor, Inc. v. Google LLC*, 137 F.4th 1333, 1339 (Fed. Cir. 2025) (internal quotation omitted); *Daubert v. Merrell Dow Pharm., Inc.*, 509 U.S. 579, 597 (1993) ("courts are charged with a 'gatekeeping role,' the

[REDACTED]

objective of which is to ensure that expert testimony admitted into evidence is both reliable and relevant.”).

Courts routinely grant *in limine* motions where an expert’s testimony cannot assist the trier of fact in understanding the evidence. *See, e.g., Certain Foodservice Equipment And Components Thereof*, Inv. No. 337-TA-1166, Order No. 33, 2020 WL 2094138 at *3 (“Dr. Vander Veen’s testimony should not be admitted, because it is not helpful to the fact finder—actually, it is misleading.”).

III. ARGUMENT

“Expert testimony is admissible to the extent it may assist the trier of fact” in understanding the evidence presented by the parties. *Certain Foodservice Equipment And Components Thereof*, Inv. No. 337-TA-1166, Order No. 33, 2020 WL 2094138 at *2; Fed. R. Evid. 702. By his own admission, Mr. Jarosz is unable to perform this basic function as an expert because he does not “understand the Samsung records at all,” despite those financial records forming the basis for all of his opinions on economic domestic industry. Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 39:7-8; *see also* Exhibit G (JDX-0005C (Jarosz Rebuttal Rpt.)), ¶¶ 54-65 (summarizing Ms. Rowe’s analysis of Samsung’s financial data); Tabs 6 (JDX-0005C.0178-181), 11 (JDX-0005C.0199-206), 12 (JDX-0005C.0207-213) (purporting to analyze Samsung financial data, including legal mapping, in SAMS382-0011281 (attached hereto as Exhibit B) and SAMS382-001128653, -0028605); Tab 5 (JDX-0005C.0176-177) (purporting to analyze SAMS382-0011282, -0011283, -0027559); Tab 7 (JDX-0005C.0182-184) (purporting to analyze SAMS382-0026453, 28516, 28880); Tab 26 (JDX-0005C.0234) (purporting to analyze foreign financial data in SAMS382-0043997). He should thus be precluded from proffering any opinions on Samsung’s economic domestic industry in this investigation. *See, e.g., id.* at 39-42, 44-46.

[REDACTED]

A. Samsung Provided Extensive Data and Related Testimony in Satisfaction of the Economic Prong of the Domestic Industry Requirement

In support of its economic domestic industry case, Samsung produced [REDACTED] [REDACTED] the detailed financial data that Samsung Electronics America, Inc. (“SEA”) records and uses in the ordinary course of business. *See* Exhibit B (CX-1469C (SEA’s comprehensive investment and headcount data for 2020-2025)); Exhibit C (Complainants’ Pre-Hearing Brief, excerpted) at 291-93 (explaining CX-1469C). In addition to the raw data itself, Samsung’s 30(b)(6) witness on economic domestic industry topics, Mr. Christopher Martinez, testified extensively about the financial data. Exhibit D (JDX-0015C (Martinez Dep. Tr.)) at 65-127. Samsung’s economic expert witness, Ms. Rowe, further explained in detail how she filtered the data and used it to perform her calculations and analysis in support of Samsung’s economic domestic industry. Exhibit E (JDX-0002C (Rowe Report), excerpted), ¶¶ 94-162 (labor and capital), 163-194 (plant and equipment), and 195-198 (comprehensive labor and capital).

As both Mr. Martinez and Ms. Rowe explained, Samsung generally records costs in the ordinary course of business [REDACTED]. *Id.*, ¶94; Exhibit D (JDX-0015C (Martinez Dep. Tr.)) at 26-27, 35-36, 57-58; Exhibit C (Complainants’ Pre-Hearing Brief, excerpted) at 291-293. Thus, by [REDACTED], Ms. Rowe was able to identify the work that is specific to Samsung’s mobile products. Exhibit E (JDX-0002C (Rowe Report)), ¶95; Exhibit D (JDX-0015C (Martinez Dep. Tr.)) at 95-96; Exhibit C (Complainants’ Pre-Hearing Brief, excerpted) at 291-93. Then, Ms. Rowe was able to calculate Samsung’s investments in labor and capital for the DI Products by allocating labor or capital costs recorded under SEA’s [REDACTED] [REDACTED] divisions using a sales-based allocation method. Exhibit E (JDX-0002C (Rowe Report)), ¶95; Exhibit D (JDX-0015C (Martinez Dep. Tr.)) at 94; Exhibit C (Complainants’ Pre-Hearing Brief, excerpted) at 291-93.

B. Mr. Jarosz Admitted He Does Not Understand the Samsung Records Underlying His Opinions

In challenging Samsung's economic domestic industry case, Oura intends to offer Mr. Jarosz to "testify that Samsung's use of a blanket allocation across unassociated expense categories does not satisfy the Section 337 standards." Exhibit F (Respondents' Pre-Hearing Brief, excerpted) at 236, 237-269. But no such opinion can be credible, as Mr. Jarosz repeatedly demonstrated his lack of familiarity with the underlying economic data during his deposition. Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 39-42, 44-46.

Specifically, despite submitting an expert report in this investigation purporting to criticize Ms. Rowe's analysis of various Samsung financial spreadsheets, when he was asked about the basis for one of his opinions, Mr. Jarosz stated: "Frankly, I don't understand the Samsung records very well at all" *Id.* at 39:7-8. And, when Mr. Jarosz was asked to clarify, he identified several aspects of Samsung's financial data and of Ms. Rowe's report that he did not understand:

Q. Okay. You said that you don't understand Samsung's records very well.

A. Correct.

Q. What about Samsung's records don't you understand?

A. There's very little. I see the outputs that were used, but I don't know how those outputs were put together. I don't know how the foreign numbers, the investment numbers, are put together. I don't really know how that -- I think it's called a [REDACTED] was done. I don't understand for sure the difference between [REDACTED]. There are a lot of things I don't know.

Id. at 39:10-40:3 (emphasis added). Mr. Jarosz confirmed this lack of understanding several more times during his deposition:

Q. When you say you don't know how those outputs were put together, what are you referring to? What outputs were you referring to?

A. I think it's largely -- the numbers are largely contained in a spreadsheet. *I don't understand*, and I'm not sure if Ms. Rowe does understand, how that was

[REDACTED]

constructed and whether there was any work that was specific to these DI products and/or these patents.

Id. at 40:10-20.

Q. And when you say that you don't know how the foreign numbers, investment numbers, were put together, what are you referring to?

A. I think there were references as to operating expenses. I think there were references as to in essence profits for these products. ***I don't know how those were arrived at.*** I believe there were probably some [REDACTED], ***but I don't know how that's done.***

Id. at 41:7-17.

Mr. Jarosz's admitted failure to understand Samsung's data did not stop him from purporting to analyze that data and critique Ms. Rowe's assessments derived from the same. For instance, despite testifying that he did not understand Samsung's [REDACTED] in Exhibit B (SAMS382-0011282), Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 39:10-40:3, he criticized that same [REDACTED] in paragraphs 68-82 and Tabs 10 and 11 of his report. *See* Exhibit G (JDX-0005C (Jarosz Rbtl. Rpt.)) at JDX-005C.0039-50, .0199-213. Mr. Jarosz likewise purported to analyze Samsung's foreign financials for purposes of his significance opinions, in spite of his admission that he did not understand "how the foreign numbers, the investment numbers, are put together." *See, e.g.,* Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 39:10-40:3, 41:7-17; Exhibit G (JDX-0005C (Jarosz Rbtl. Rpt.)), ¶¶126-136, JDX-0005C.0234 (Tab 26, analyzing "worldwide benchmarks" derived from SAMS382-0043997). None of these analyses can be trusted given Mr. Jarosz's deposition testimony that he did not "understand the Samsung records very well at all" Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 39:7-8.

C. Mr. Jarosz Does Not Challenge the Reliability of Samsung's Data or the Existence of a Domestic Industry

Neither Oura nor Mr. Jarosz dispute the accuracy of the Samsung financial data. *See, e.g., Id.* at 62:3-8 ("Q. I said, again, as you said earlier, you're not taking the position that Samsung's

[REDACTED]

data is unreliable. Correct? A: I'm not taking that position."); *see also id.* at 44:14-17 ("Q. You don't cite any authority to suggest that [REDACTED] is per se unreliable. Right? A. No, I don't."), 45:17-22 ("Q. You recognize elsewhere in your report that Samsung's investment numbers, the underlying numbers and data that Ms. Rowe relies upon, are audited and are [REDACTED] [REDACTED]. Correct? A. At the very highest level, yes."). Indeed, Mr. Jarosz does not even dispute that Samsung has an economic domestic industry in the United States. *See id.* at 28:17-20 ("Q. Is it your opinion that Samsung has no domestic industry in this case? A. No, I don't think I've drawn that specific opinion....").

D. Because Mr. Jarosz's Opinions Depend on Data He Asserts He Does Not Understand, His Opinions Cannot Assist the ALJ

At its core, Oura's principal challenge to Samsung's domestic industry seems to be based on the fact that Mr. Jarosz could not understand or manipulate Samsung's produced data. He testified that he was unable to filter Samsung's produced data to obtain an appropriate base of expenses—despite detailed testimony from Samsung's financial witness, Mr. Martinez. *See, e.g.,* Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 39-42, 44-46; Exhibit D (JDX-0015C (Martinez Dep. Tr.)) at 65-127. Further, Mr. Jarosz admitted that he was unable to apply the universal allocation methodology to Samsung's investment data to obtain the results that Ms. Rowe obtained—despite the detailed explanations in her report. *See, e.g.,* Exhibit A (JDX-0049C (Jarosz Dep. Tr.)) at 39-42, 44-46; Exhibit E (JDX-0002C (Rowe Report)).

Because Mr. Jarosz admits he does not "understand the Samsung records at all," he lacks the foundation to offer any opinion about the Samsung data itself or about Ms. Rowe's analysis. Exhibit A (JDX-49C (Jarosz Dep. Tr.)) at 39:7-8; *see also Mac Sales, Inc. v. E.I. du Pont de Nemours & Co.*, 24 F.3d 747, 752-53 (5th Cir. 1994) (concluding that the district court had not abused its discretion in holding that the expert "lacked a proper foundation from which to testify

[REDACTED]

on foreign markets” where the expert admitted “he did no research on foreign markets”); *Horton v. W.T. Grant Co.*, 537 F.2d 1215, 1218 (4th Cir. 1976) (“It is true that relevant testimony from a qualified expert is admissible only if the expert knows of facts which enable him to express a reasonably accurate conclusion as opposed to conjecture or speculation.”); *McDowell v. Brown*, 392 F.3d 1283, 1300 (11th Cir. 2004) (holding that an “expert opinion is inadmissible when the only connection between the conclusion and the existing data is the expert’s own assertions.”); *Gen. Elec. Co. v. Joiner*, 522 U.S. 136, 137 (1997) (“Nothing in either *Daubert* or the Federal Rules of Evidence requires a district court to admit opinion evidence that is connected to existing data only by the *ipse dixit* of the expert.”).

Accordingly, Mr. Jarosz should be precluded from testifying about the economic prong of the domestic industry requirement where he does not understand the underlying data, as he can neither credibly use that data to reliably support any of his opinions nor assist the ALJ in understanding that same data.

IV. CONCLUSION

For the foregoing reasons, Complainants request that Mr. Jarosz be precluded from offering any testimony regarding Samsung’s economic domestic industry.

Dated: August 24, 2026

Respectfully submitted,

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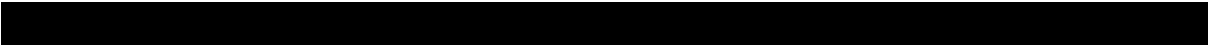
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EXHIBIT A

REDACTED IN ITS ENTIRETY

EXHIBIT B

REDACTED IN ITS ENTIRETY

EXHIBIT C

REDACTED

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COMPLAINANTS' PRE-HEARING BRIEF

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<i>Certain Wet Dry Surface Cleaning Devices</i> , Inv. No. 337-TA-1304, 2023 WL 3093539 (ITC Apr. 7, 2023)	330

TABLE OF ABBREVIATIONS

Abbreviation	Phrase
Oura or Respondents	Respondents Ouraring Inc. and Oura Health Oy
Samsung or Complainants	Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc.
'359 Patent	U.S. Patent No. 10,642,359
'677 Patent	U.S. Patent No. 10,945,677
'675 Patent	U.S. Patent No. 10,231,675
'789 Patent	U.S. Patent No. 10,978,789
Sensor Patents	'359, '677, '675 Patents
Asserted Claims	'359 patent: claims 1 and 4 '677 patent: claims 1, 2, 3, and 9 '675 patent: claims 13 and 15 '789 patent: claims 6 (technical DI), and 7,9 (infringement)
DI	Domestic Industry
TDI	Technical prong of Domestic Industry
Accused Products	Oura Ring 4 Oura Ring 5 (a/k/a [REDACTED]) [REDACTED]
DI Product(s)	One or more of: - Galaxy Watch 4, 5, 6, 7, 8, Ultra - Galaxy Ring - Samsung Galaxy S22, S22+, S22 Ultra, S23, S23+, S23 Ultra, S24, S24+, S24 Ultra, S25, S25+, and S25 Edge
WDI Product(s)	One or more of the Wearable DI Products: - Galaxy Watch 4, 5, 6, 7, 8, Ultra - Galaxy Ring
PDI Product(s)	One or more of the Phone DI Products: Samsung Galaxy S22, S22+, S22 Ultra, S23, S23+, S23 Ultra, S24, S24+, S24 Ultra, S25, S25+, and S25 Edge
PCB	Printed Circuit Board
HR	Heart rate
SpO2	Blood oxygen (or blood oxygenation)
IR	Infrared

TABLE OF ASSERTED CLAIMS

'675 Patent	
[13.pre]	A method comprising:
[13.a]	determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;
[13.b]	acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;
[13.c]	activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;
[13.d]	detecting a biometric information of the user using the activated at least one second sensor;
[13.e]	during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor;
[13.f]	and in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.
[15.pre]	The method of claim 13, further comprising:
[15.a]	acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and
[15.b]	activating the at least one second sensor based on at least a part of the additional information.

'677 Patent	
[1.pre]	A wearable electronic device comprising:
[1.a]	a motion sensor;
[1.b]	one or more optical sensors includes a light emitting unit and a light receiving unit; and
[1.c]	at least one processor configured to:
[1.d]	obtain, using the motion sensor, a first motion signal corresponding to the wearable electronic device, prior to a biological signal being obtained using the one or more optical sensors,
[1.e]	emit light using the light emitting unit based at least in part on a determination that the first motion signal satisfies a specified condition,
[1.f]	obtain the biological signal corresponding to a user using the light receiving unit based at least in part on reflected light which the light is reflected on the user,
[1.g]	obtain, using the motion sensor, a second motion signal corresponding to the wearable electronic device during the obtaining of the biological signal, and

[1.h]	refrain from the emitting of the light, based at least in part on a determination that the second motion signal does not satisfy the specified condition.
[2.pre]	The wearable electronic device of claim 1, wherein the at least one processor is further configured to:
[2.a]	determine whether the wearable electronic device is attached to the user using the one or more optical sensors; and
[2.b]	perform the emitting of the light further based at least in part on a determination that the wearable electronic device is attached to the user.
[3.pre]	The wearable electronic device of claim 2, wherein the at least one processor is further configured to:
[3.a]	perform the determining based at least in part on a determination that the first motion signal satisfies a specified condition.
[9.pre]	A wearable electronic device comprising:
[9.a]	a first sensor;
[9.b]	a second sensor; and
[9.c]	at least one processor configured to:
[9.d]	obtain, using the first sensor, first information corresponding to movement of the wearable electronic device,
[9.e]	activate the second sensor based at least in part of the movement,
[9.f]	obtain, using the activated second sensor, second information corresponding to biological signal related to a user during the obtaining of the first information, and
[9.g]	refrain from the obtaining of the second information using the activated second sensor based at least in part on a determination that the first information satisfies a specified range.

'359 Patent	
[1.pre]	A wearable device comprising:
[1.a]	a motion sensor;
[1.b]	a biological sensor; and
[1.c]	a controller configured to:
[1.d]	obtain a movement signal of an object using the motion sensor, and a biological signal of the object using the biological sensor,
[1.e]	determine, based on an analysis of the movement signal, whether to perform a specified function of the wearable device using the biological signal, and
[1.f]	perform the specified function using a select portion of the biological signal obtained during a select period, of the movement signal, determined to correspond to a specified condition.
[4.pre]	The wearable device of claim 1, wherein the controller is further configured to:
[4.a]	determine the biological signal to be invalid, irrespective of the movement signal, in response to the magnitude of the biological signal not satisfying a second threshold value.

'789 Patent	
[1.pre]	A portable communication device comprising:
[1.a]	a housing including a first conduction portion forming a first portion of a side surface of the portable communication device and a second conduction portion forming a second portion of the side surface, the first conduction portion operating as a first antenna and the second conduction portion operating as a second antenna;
[1.b]	a wireless communication circuitry
[1.c]	a first printed circuit board (PCB) including
[1.c][i]-[iv]	a first PCB portion; a second PCB portion in contact with the first PCB portion and being more flexible than the first PCB portion; a third PCB portion in contact with the second PCB portion and being less flexible than the second PCB portion; a fourth PCB portion in contact with the third PCB portion and being more flexible than the third PCB portion
[1.c][v][a]	a plurality of lines located from the first PCB portion to the fourth PCB portion through the second PCB portion and the third PCB portion, the plurality of lines including a first ground line, a second ground line at least partially spaced apart from the first ground line, a first signal line located between the first ground line and the second ground line, and a second signal line located between the first signal line and the second ground line,
[1.c][v][b]	the first signal line electrically connected with the first antenna and the wireless communication circuitry, and the second signal line electrically connected with the second antenna and the wireless communication circuitry.
[6.pre]	The portable communication device of claim 1, further comprising:
[6.a]	a second PCB on which the wireless communication circuitry is located,
[6.b]	wherein the first ground line and the second ground line are electrically connected with a ground member located in the second PCB, or wherein the first ground line and the second ground line are electrically connected with a ground member located in the first PCB portion.
[7.pre]	A portable communication device comprising:
[7.a]	a first electronic component;
[7.b]	a second electronic component; and
[7.c]	a printed circuit board (PCB) electrically connected with the first electronic component and the second electronic component, the PCB including:
[7.c][i]	a first rigid PCB portion;
[7.c][ii]	a first flexible PCB portion in contact with the first rigid PCB portion;
[7.c][iii]	a second rigid PCB portion in contact with the first flexible PCB portion;
[7.c][iv]	and a second flexible PCB portion in contact with the second rigid PCB portion,
[7.c][v]	wherein each of the first rigid PCB portion and the second rigid PCB portion includes:

[7.c][v][a]	a first insulating layer including a first material and forming a first exterior surface of each of the first rigid PCB portion and the second rigid PCB portion;
[7.c][v][b]	a first conduction layer located on or above the first insulating layer;
[7.c][v][c]	a second insulating layer located on or above the first conduction layer and having a first thickness;
[7.c][v][d]	a second conduction layer located on or above the second insulating layer; and
[7.c][v][e]	a third insulating layer including the first material and located on or above the second conduction layer, the third insulating layer forming a second exterior surface of each of the first rigid PCB portion and the second rigid PCB portion,
[7.c][vi]	and wherein each of the first flexible PCB portion and the second flexible PCB portion includes:
[7.c][vi][a]	a first insulating layer including a second material different from the first material and forming a first exterior surface of each of the first flexible PCB portion and the second flexible PCB portion;
[7.c][vi][b]	a first conduction layer located on or above the first insulating layer and being electrically connected with the first conduction layer of the first rigid PCB portion and the first conduction layer of the second rigid PCB portion;
[7.c][vi][c]	a second insulating layer located on or above the first conduction layer and having a second thickness thinner than the first thickness;
[7.c][vi][d]	a second conduction layer located on or above the second insulating layer and being electrically connected with the second conduction layer of the first rigid PCB portion and the second conduction layer of the second rigid PCB portion; and
[7.c][vi][e]	a third insulating layer including the second material and located on or above the second conduction layer, the third insulating layer forming a second exterior surface of each of the first flexible PCB portion and the second flexible PCB portion.
[9.pre]	The portable communication device of claim 7, wherein:
[9.a]	each of the first flexible PCB portion and the second flexible PCB portion includes a fourth insulating layer located between the second conduction layer and the third insulating layer,
[9.b]	and a third conduction layer located between the third insulating layer and the fourth insulating layer.

I. INTRODUCTION

A violation of Section 337 is compelled by the great weight of evidence that Samsung has presented versus the complete absence of contrary evidence or even any rebuttal from Oura across many issues. Samsung is asserting infringement of four patents, falling into two groups: (1) three patents directed to the operation of sensors on wearable devices, U.S. Patent Nos. 10,231,675 (“’675 Patent”), 10,945,677 (“’677 Patent”), and 10,642,359 (“’359 Patent”) (hereinafter “Sensor Patents”), and (2) U.S. Patent No. 10,978,789 (“’789 Patent”), which is directed to the structure of a printed circuit board (“PCB”). For Technical DI (“TDI”), Oura has no rebuttal at all for some claims. For infringement, Oura’s rebuttals rely on an improper “practicing the prior art defense” or belated, incorrect claim constructions. Oura also cannot carry its burden on invalidity. Its invalidity grounds rely on references missing critical claim elements and dubious motivations to combine, and Oura disputes only a subset of the secondary considerations of non-obviousness.

For both infringement and TDI for all three Sensor Patents, Samsung’s theory is largely the same, focusing on how SpO2 (blood oxygen) detection is triggered based on motion signals in the Accused Products and the Wearable DI (“WDI”) Products. In both the Accused and WDI Products, an accelerometer tracks motion for wear detection and [REDACTED]. If little or no motion is detected, as is common during periods when the user is at rest, the products [REDACTED]. Conversely, if the accelerometer detects motion indicating that the user is active, the products [REDACTED]. Oura does not dispute the Accused and WDI Products perform SpO2 detection, nor does Oura dispute how that detection works, including that it is [REDACTED].

Indeed, for the two related '675 and '677 Patents, Oura has presented *no rebuttal* evidence or opinion from its expert, Dr. Mortazavi, on noninfringement. Instead, Oura responds with an improper “practicing the prior art defense,” contending that if the Accused Products practice the claims, then so too must Oura’s own Ring 1 product, which Oura contends is prior art. Leaving aside the stark material differences between Ring 1 and 4, the Federal Circuit and the ALJ have rejected “practicing the prior art” as a defense to infringement. Similarly, for TDI, Oura presents no rebuttal for all asserted claims of the '675 Patent and Claim 9 of the '677 Patent. For '677 Patent, Claim 1 (and Claims 2-3 that depend from it), Oura asserts failure of proof, claiming that Samsung’s expert did not fully explain what aspects of the WDI Products correspond to the “first motion signal” and “biological signal.” But Oura’s contention is belied by Samsung’s expert report, which fully details how these “signal” requirements are met.

Oura’s invalidity arguments for the '677 and '675 Patents also provide no reason to deny relief under Section 337. Oura is relying heavily on its own Ring 1 product as prior art. But, as a threshold matter, Oura has failed to provide evidence that the Ring 1 even qualifies as prior art, given that it only went on sale in late 2015, *after* the August 12, 2015 priority dates. The source code Oura attempts to rely on likely postdates the priority date of the '677 and '675 Patents by over a year. Beyond these threshold failings, it is undisputed that the Ring 1 could *not* measure SpO2—the very feature that Samsung accuses of infringement for Ring 4. Thus, Oura cannot possibly claim that Ring 1 satisfies the claims for the same reasons as Ring 4. Oura’s other prior art references all suffer from the same flaw: none inactivates the alleged “biological sensor” in response to detecting no motion as required by the claims. Rather, the “biological sensor” continues to operate at a reduced level, which does not satisfy the claim requirements to “*inactivate*” the “biological sensor” or “refrain from the emitting of the light.”

[REDACTED]

For the '359 Patent, asserted Claim 1 requires that a device determine a “select portion” of the “biological signal” that is obtained during a corresponding “select period” and then perform a “specified function” using that “select portion.” And its asserted dependent Claim 4 requires evaluating whether the “biological signal” is “invalid” based on its magnitude. Both the Accused and TDI Products’ SpO2 detection processes satisfy these requirements. For Claim 1, the products perform the “ [REDACTED]

[REDACTED] (“select portion” of the “biological signal”) [REDACTED]

[REDACTED] (i.e., “select period”). For Claim 4, [REDACTED]

[REDACTED] In rebuttal, Oura’s *only* argument for both noninfringement and TDI is that the “select portion” of the “biological period” refers to a smaller portion of the signal *within* that “select period.” But Oura’s rebuttal argument ignores source code evidence Samsung has presented showing infringement even under Oura’s interpretation of “select portion.”

The prior art reference that Oura presents for the '359 Patent are also deficient. None of the references teaches the performing a “specified function” using the “select portion” requirement of both Claims 1 and 4. And for Claim 4’s additional requirement of checking for “invalid” values, Oura resorts to obviousness combinations with prior art references from disparate fields that lack motivation to combine and that, at any rate, do not disclose the claimed invalidity check.

For the '789 Patent, Samsung is asserting Claims 7 and its dependent Claim 9 for infringement and Claim 6 (which depends from Claim 1) for DI. Claims 7 and 9 recite a printed circuit board (“PCB”) structure composed of alternating rigid-flexible portions, with multiple conductive and insulating layers across those portions and each layer having particular thicknesses and materials. Based on extensive teardown analysis of the Oura Ring 4, Samsung has demonstrated that all of Claims 7 and 9’s structural requirements are met. In response, Oura’s sole

[REDACTED]

defense again relies on belated claim interpretation that different insulating materials cannot be grouped together and mapped to a single “insulating layer” as recited in the claims. But Oura’s interpretation is undermined by the ’789 Patent specification, which expressly describes individual “insulating layers,” each made of multiple insulating materials. For TDI, Oura similarly relies on belated claim interpretations that are either contradicted by the specification or irrelevant in view of the undisputed technical facts as described in Samsung’s documentation.

The prior art that Oura presents to the ’789 Patent does not come close to meeting the claims’ requirements. For Claims 7 and 9, none of Oura’s prior art grounds disclose both claims’ requirement that (1) the “second insulating layer” in the rigid portion of the PCB be *thicker* than the “second insulating layer” in the PCB’s flexible portion; and (2) that a *different* insulating material be used to form the exterior, outermost layer of the PCB’s rigid portion versus its flexible portion. And for Claim 6, Oura presents only one prior art ground, which relies a combination of three disparate references: the Galaxy S5 smartphone as a primary reference and two publication references having nothing to do with smartphones.

Oura also presents Section 101 defenses for the three Sensor Patents, but these defenses fail under Federal Circuit precedents. The Sensor Patents’ claims are directed to wearable devices with a specific sensor configuration (e.g., motion sensor and a biological sensor), and deactivating the biological sensor when motion is too high to (1) improve the reliability of measurements taken by the biological sensor; and (2) conserve power from not having the biological sensors in constant use. The patents’ claims are no different from those upheld by the Federal Circuit in multiple cases about improved sensor systems.

Regarding economic domestic industry, Samsung has made, and will continue to make, significant domestic investments in labor and capital, as well as plant and equipment, under 19

[REDACTED]

U.S.C. §1337(a)(3) with respect to the domestic industry products. Samsung's domestic investments in the domestic industry products are significant and substantial in the context of SEA's mobile division, in the context of Samsung's foreign expenditures, and in the context of the industry. Samsung's domestic investments are expected to continue.

II. BACKGROUND

A. Procedural History

Samsung filed a complaint under Section 337 against Oura on December 12, 2025, asserting infringement of the four Asserted Patents. JDX-0030C. Samsung filed an amended complaint on January 2, 2026. JDX-0032.

On January 14, 2026, the Commission instituted this Investigation based on the amended complaint's allegations of Section 337 violations arising from Oura's importation into the U.S. and the sale for importation of certain wearable devices, including Oura's Ring 4 product, that infringe claims of the Asserted Patents. JDX-0034.

On June 15, 2026, the ALJ issued an order construing certain disputed terms of the Asserted Patents. JX-0009.

On July 13, 2026, Samsung moved for summary determination regarding infringement and TDI for the '677 and '675 Patents ("Samsung's MSD"). EDIS ID 887878 (Mot. No. 1478-009). On July 13, 2026, Oura filed two motions: (1) a motion for summary determination of noninfringement by Oura's alternative products, Ring 5 and [REDACTED] ("Oura's MSD") and (2) a motion strike deposition testimony from Samsung's experts regarding Ring 5 and [REDACTED] ("Oura's MTS"). EDIS ID 887851 (Mot. No. 1478-007); EDIS ID 887862 (Mot. No. 1478-008). The parties have completed briefing on all three motions, which are pending before the ALJ.

On July 29, 2026, the ALJ granted Samsung's motion to partially terminate the

Investigation. EDIS ID 889677. The remaining asserted claims are:

U.S. Patent No.	Remaining Claims at Issue
10,642,359	1 and 4
10,945,677	1-3 and 9
10,231,675	13 and 15
10,978,789	6 (for DI) 7 and 9 (for infringement)

The evidentiary hearing is scheduled for September 16-18, 21, and 22, 2026, with a target date set for May 17, 2027. EDIS ID 881268.

B. The Parties

1. Samsung Complainants

Complainant Samsung Electronics Co., Ltd. (“SEC”) is a corporation organized and existing under the laws of South Korea. JDX-0032, ¶8. SEC is the assignee of the Asserted Patents with the right to sue for all past, present, and future infringement thereof. *Id.* Complainant Samsung Electronics America, Inc. (“SEA”) is a corporation organized and existing under the laws of the state of New York, having its principal place of business in New Jersey. *Id.*, ¶9. SEA is a wholly-owned subsidiary of SEC. *Id.* SEA has over 40 facilities across the U.S. and employs thousands of personnel tasked with commercializing U.S. products, including its smartphones, wearables, and smart rings in the U.S. JDX-0002C, ¶28.

2. Oura Respondents

Ouraring Inc. is a Delaware corporation with its principal place of business in San Francisco, California. RDX-0034C, ¶40. Oura Health Oy is a Finnish company with its principal place of business in Oulu, Finland. *Id.*, ¶41. Ouraring, Inc. is a wholly owned subsidiary of Oura Health Oy. *Id.*, ¶40. Oura formed a new parent company, Oura Inc., a Delaware corporation. *Id.*, ¶41.

C. The Technology

The technology at issue in this Investigation falls into two categories. *First*, the three Sensor Patents relate to wearable devices that use biological sensors to measure a user's health characteristics (e.g., SpO2), and selectively activate the biological sensors during periods when a user is determined to be at rest based on motion signals detected by a separate motion sensor, while deactivating the biological sensors when the user is determined to be in motion also based on motion signals. JX-0001-JX-0003. This selective activation of the biological sensors during periods of rest (and deactivation during periods of activity) improves the accuracy of measurements and reduces power consumption. *See, e.g.*, JX-0002, 31:15-24.

Second, the '789 Patent relates to the internal structure of a rigid-flex PCB within a device, including its layers, thicknesses, and material composition, and the use of that PCB to transmit high frequency signals within the device. JX-0004, 1:19-24, 2:24-34. The patent explains that prior art used separate coaxial cables to transmit such high frequency signals within a device, and the patent's use of a PCB to transmit such signals instead presented many benefits, including saving space, making the claimed invention particularly advantageous for smaller-form factor devices, such as a ring. *Id.*, 1:36-48, 52-55.

D. The Asserted Patents

1. The '675 Patent

The '675 Patent, entitled "Method for Detecting Biometric Information and Electronic Device Using Same," issued on March 19, 2019, to inventors Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi, and claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. JX-0003, Cover.

[REDACTED]

2. The '677 Patent

The '677 Patent, entitled “Method for Detecting Biometric Information and Electronic Device Using Same,” issued on March 16, 2021, to inventors Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi, and claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. JX-0002, Cover. The '677 Patent is a continuation of the '675 Patent, and therefore shares a substantively identical specification.

3. The '359 Patent

The '359 Patent, entitled “Wearable Biosignal Interface and Method Thereof,” issued on May 5, 2020, to inventors Chang Mok Choi, Sang Joon Kim, and Seung Keun Yoon, and claims priority to Korean Patent App. No. 10-2013-0098476, filed on August 20, 2013. JX-0001, Cover.

4. The '789 Patent

The '789 Patent, entitled “Electronic Device Including High-Frequency Transmission Circuit,” issued on April 13, 2021, to inventors Han-Min Cho, Chan-Gi Park, Yeon-Sang Yun, Tae-Wook Ham, Hei-Seong Kwak, Byoung-Il Son, and Sung-Chul Park, and claims priority to Korean Patent App. No. 10-2016-0073355, filed on June 13, 2016. JX-0004, Cover.

E. The Products At Issue

1. The Accused Products

Samsung accuses the Ring 4 and accompanying software applications, including the Oura App, of infringing the Asserted Claims. JDX-0004C, ¶3. Samsung does not believe the Ring 5 or [REDACTED] are proper for adjudication (*see infra*), but addresses them herein where they would be

relevant should the ALJ disagree.¹

a. Ring 4

The Ring 4 is a finger-worn wearable device, released in October 2024, that operates together with the Oura App. JDX-0004C, ¶72. The Ring 4 is pictured below. CX-0710C.



b. Ring 5

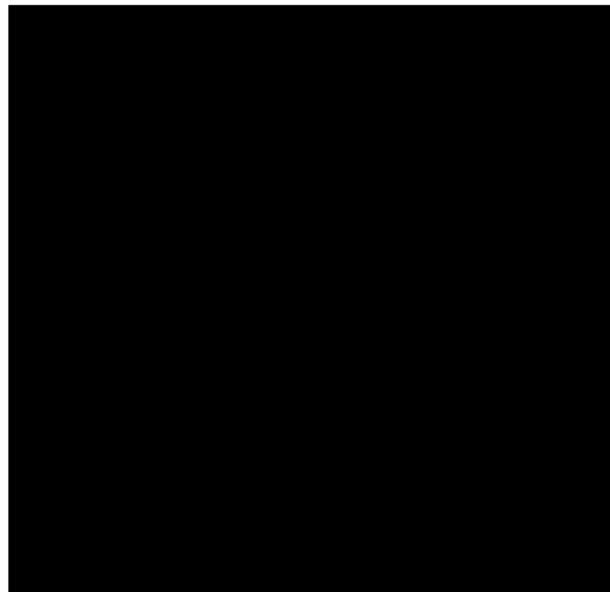
Ring 5 is another finger-worn wearable device that was announced publicly on May 28, 2026, with sales and shipments starting on June 4, 2026. JDX-0028C, 63:18-64:6. The Ring 5 is pictured below. CX-1148C.

¹ As detailed in the parties' MSD and motion to strike briefing, Samsung requests that the Oura Ring 5 and [REDACTED] be excluded from adjudication because they are redesigns or alternative products that Oura never disclosed as such during fact discovery, and Oura failed to comply with the *Oligosaccharides* factors. EDIS ID 889193; EDIS ID 889200. Samsung also intends to file a motion *in limine* excluding both products from the evidentiary hearing. But to avoid waiving its rights at this time, Samsung's pre-hearing brief addresses both products.



c. [REDACTED]

The ‘[REDACTED]’ ring is a future Oura ring product, projected for release [REDACTED] JDX-0028C, 63:18-64:13. [REDACTED] is pictured below. CX-1139C.



2. The DI Products

Samsung relies on two sets of Domestic Industry Products. For the three Sensor Patents, Samsung relies on the Samsung Galaxy Watch4, Galaxy Watch5, Galaxy Watch6, Galaxy Watch7, Galaxy Watch8, Galaxy Watch Ultra, and Galaxy Ring (“Wearable DI Products” or “WDI Products”). JDX-0004C, ¶4; CPX-0003 to CPX-0009. For the ’789 Patent, Samsung relies on the

Samsung Galaxy S22, S22+, S22 Ultra, S23, S23+, S23 Ultra, S24, S24+, S24 Ultra, S25, S25+, and S25 Edge smartphones (“Phone DI Products” or “PDI Products”). JDX-0003C, ¶313; CPX-0010 to CPX-0021.

a. Samsung Galaxy Watches

The Galaxy Watch Products are electronic smartwatches worn on a user’s wrist. JDX-0004C, ¶653. A representative Galaxy Watch, Galaxy Watch8, is pictured below. CX-0227.



b. Samsung Galaxy Ring

The Galaxy Ring is an electronic smart ring worn on a user’s finger. JDX-0004C, ¶¶126, 653. The Galaxy Ring is pictured below. CX-1513.

[REDACTED]

products’ slim, minimalist form factor and their reliable wireless performance—precisely the attributes that the claimed rigid-flex transmission circuit enables by routing high-frequency signals reliably through a compact, space-constrained housing without utilizing coaxial cables. *Id.*; CX-1427-CX-1432. Praise directed to these attributes is therefore probative of the non-obviousness of the claimed features, and not of unrelated aspects of the products. JDX-0008C, ¶291.

IX. DOMESTIC INDUSTRY ECONOMIC PRONG

The economic prong of the domestic industry requirement is satisfied when, with respect to the articles protected by the asserted patents, there exists in the United States one of three independently sufficient showings: “(A) significant investment in plant and equipment; (B) significant employment of labor or capital; or (C) substantial investment in its exploitation, including engineering, research and development, or licensing.” 19 U.S.C. § 1337(a)(3). As shown below, Samsung has satisfied the economic prong of the domestic industry requirement under sub-prongs (A) and (B); neither Oura nor its expert, John Jarosz, disputes that Samsung has an economic domestic industry in the United States. *See, e.g.*, JX-0049C at 28 (“[Q.] Is it your opinion that Samsung has no domestic industry in this case? A. No, I don't think I've drawn that specific opinion....”).

The Commission undertakes a “holistic review of all relevant considerations” examining “the articles of commerce, and the realities of the marketplace.” *Lashify Inc. v. Int’l Trade Comm’n*, 130 F.4th 948, 963 (Fed. Cir. 2025); *Wuhan Healthgen Biotechnology Corp. v. Int’l Trade Comm’n*, 127 F.4th 1334, 1339 (Fed. Cir. 2025). A complainant demonstrates significance by showing how its activities are important to the articles protected by the patent in the context of its own operations, the marketplace, and the industry in question. *Certain Printing & Imaging Devices & Components Thereof*, Inv. No. 337-TA-690, Comm’n Op. at 27–28 (Feb. 17, 2011).

[REDACTED]

The scope of cognizable activities under sub-prongs (A) and (B) is broad: *Lashify* confirmed that sub-prongs (A) and (B) do not cabin the range of enterprise activities whose costs may be counted—sales, marketing, customer support, and operations all qualify. *Lashify*, 130 F.4th at 963.

The relevant date for assessing domestic industry is the filing date of the complaint. *Philip Morris Prods. S.A. v. Int’l Trade Comm’n*, 63 F.4th 1328, 1341 n.4 (Fed. Cir. 2023). Because companies do not ordinarily track investments on a product-by-product basis, the Commission accepts reasonable allocation methodologies appropriate to a complainant’s circumstances and supported by the evidence. *Certain Mobile Device Holders and Components Thereof*, Inv. No. 337-TA-1028, Comm’n Op. at 18 (Mar. 22, 2018).

SEA, a wholly-owned subsidiary of SEC, is headquartered in Englewood Cliffs, New Jersey. JDX-32C, Ex. 11C (“Martinez Decl.”), ¶1; JDX-0015C, 157; CX-1441, 21, 67, 354; JDX-0045C, 20; RX-0411C; CX-1534. SEA is the Samsung entity that sells Samsung products in the United States.¹⁴ JDX-0002C, ¶28; CX-1441, JDX-0045C, 7; RX-0411C; CX-1534; CX-1553, 19; JDX-0015C, 48-49; JDX-32C, Ex. 11C, ¶11. Christopher Martinez, Director of Marketing for SEA, will testify that SEA is involved in numerous development and commercialization activities, including engineering, research, development, testing, customer service, importation, sales, marketing, and distribution of products in the United States, including wearables and smartphones. JDX-2C, ¶28C; CX-1441; JDX-0045C, 7, RX-0411C; CX-1534; CX-1553, 19; JDX-0015C, 48-49; JDX-32C, Ex. 11C, ¶1. It has over 40 facilities across the U.S. and employs thousands of personnel tasked with commercializing U.S. products, including its smartphones, wearables, and

¹⁴ Contrary to Oura’s assertion, SEA is authorized to practice the patents in the U.S. *See, e.g., Certain Products Containing Interactive Program Guide and Parental Control Technology*, Inv. No. 337-TA-845, Final Initial Determination at 276 (June 7, 2013).

[REDACTED]

smart rings in the U.S. JDX-32C, Ex. 11C, ¶3. [REDACTED]

[REDACTED]

[REDACTED] JDX-0015C, 91, 140, 157; JDX-2C, ¶91; JDX-0032, ¶1.

Samsung has made, and continues to make, significant and/or substantial long-term and ongoing economic investments in the United States for the domestic industry products. Samsung's investments in plant and equipment, and labor or capital are economically significant within the meaning of sub-prongs (A) and (B).

SEA's extensive domestic business operations for the domestic industry products include

[REDACTED]

[REDACTED]. JDX-0002C, ¶16; JDX-0015C, 130; JX-0047, 10-11; CX-1469C. [REDACTED]

[REDACTED] JDX-0002C, ¶16; JDX-0015C, 130; JX-0047, 10-11; CX-1469C. The DI Products in this matter include Samsung Galaxy smartwatches, Galaxy rings (collectively the WDI Products), and Galaxy smartphones (the PDI Products). JDX-0002C, ¶16; JDX-0015C, 130; JX-0047, 10-11; CX-1469C.

Samsung's DI Products belong to the Samsung mobile division [REDACTED], which also includes non-practicing tablets, earbuds, and other smartphones. JDX-0002C, ¶17; RX-0369C; JX-0047, 9-10; JDX-0015C, 61-63. [REDACTED]

[REDACTED] JDX-0002C, ¶17; RX-0369C; JX-0047, 9-10; JDX-0015C, 61-63. Given that Samsung's mobile products include all smartphones and certain tablets, both of which make up a significant portion of U.S. unit sales in their respective categories, the DI Products represent significant sales, and are important products for Samsung. CX-1556; CX-1524; JDX-0002C, ¶17; RX-0369C; JX-0047, 9-

[REDACTED]

10; JDX-0015C, 61-63.

A. Allocation Methodology

In the ordinary course of business, Samsung generally records costs by [REDACTED]. JDX-0002C, ¶94; JDX-0015C, 26-27, 35-36, 57-58. Samsung employs a [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 58, 82-83, 101-103, 111. [REDACTED] JDX-0002C, ¶95; JDX-0015C, 95-96. This includes the DI Products. JDX-0002C, ¶95. Then, expenses associated with that work can be allocated based on the [REDACTED] associated with the DI Products as a portion of all mobile products. At a high level, Samsung's investments in labor and capital for the DI Products may be calculated by allocating labor or capital costs recorded under SEA's [REDACTED] divisions. JDX-0002C, ¶95; JDX-0015C, 94. Facility expenses are allocated by the same cost centers. JDX-0002C, ¶163; JDX-0032, ¶2.

Contrary to the arguments presented by Mr. Jarosz, the employees represented in Samsung's spreadsheets as [REDACTED] or based off the allocation model DI specific products are [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 131-132. Samsung's U.S. mobile products include the following categories: [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 61-63. Overall, these products are associated with a [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 58, 61-63, 82-83, 94-98, 101-103, 111, 131-132; RX-0369C; JX-0047, 9-10. Employees and expenses associated

[REDACTED]

with work done on, e.g., [REDACTED]

[REDACTED]. As Mr. Jarosz acknowledged, Samsung, like many companies (including Oura), does not categorize or track its employees or expenses on a product-by-product basis. JDX-49C. Instead, Samsung tracks those expenses and employees [REDACTED]. This [REDACTED] addresses the realities of Samsung's employees' work—that such work often relates to multiple products within a product ecosystem inside the business unit. For instance, Mr. Martinez will testify that [REDACTED]. JDX-15C.

The starting point for the calculations of SEA's investments under sub-prongs (A) and (B) is a document that shows total expenses for SEA, including [REDACTED]. JDX-0002C, ¶95; CX-1469C at tab [REDACTED]; JDX-0015C, 93-94. The data in this spreadsheet comes from an underlying financial database at Samsung and is the same data SEA records and uses in the ordinary course of business. *Id.* As Mr. Martinez will testify, the high-level cost centers associated with this work are [REDACTED]. JDX-0002C, ¶96; JDX-0015C, 93-94, 97-98; CX-1469C at tab [REDACTED] (*see, e.g.,* [REDACTED]). High-level cost centers associated with [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 58, 61-63, 82-83, 94-98, 101-103, 111, 131-132; RX-0369C; JX-0047, 9-10.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

these departments were identified as having SEA employees whose functions related to mobile products, including the DI Products. JDX-0002C, ¶97; JDX-0015C, 57-58 95-97; JDX-53C. JX-0047, 10-11; CX-1469C at tabs [REDACTED] [REDACTED]

[REDACTED]

By cost center, Samsung's document CX-1469C provided monthly costs for the period January 1, 2021 through November 30, 2025. JDX-0002C, ¶98; CX-1469C at tab [REDACTED] (*see, e.g.*, [REDACTED]). Samsung's labor or capital costs are generally categorized as: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

JDX-0002C, ¶98, Ex. 4; CX-1469C at tab [REDACTED] [REDACTED]. Samsung's data in CX-1469C also includes an [REDACTED] [REDACTED], where the headcount for each month from January 31, 2021 through November 30, 2025 can be derived. JDX-0002C, ¶99; CX-1469C at tabs [REDACTED] [REDACTED] JDX-0015C, 108-109.

After identifying labor or capital costs that are specific to Samsung's U.S. mobile products, Samsung's expert, Ms. Julia Rowe, performed a sales-based allocation to isolate amounts that are attributable to the DI Products. Using a sales allocation to allocate investments to the DI Products is [REDACTED] and a reasonable approach here. JDX-0002C, ¶100; JDX-0015C, 58, 82-83, 101-103, 111.A [REDACTED] was most appropriate for each of

[REDACTED]

[REDACTED]

JDX-0002C, ¶101; JDX-0015C, 122-123. While this includes both [REDACTED]
[REDACTED], Samsung does not organize its business strictly by product or function,
and the included employees work on [REDACTED]. *Id.* On
average, Samsung's U.S. [REDACTED] from the domestic industry products comprised
approximately [REDACTED] of Samsung's total U.S. mobile product [REDACTED]. JDX-0002C, ¶101, Ex.
5.0. This is summarized below:

[REDACTED]

Allocating in proportion to Samsung's [REDACTED] is reflective of SEA's business
practices. JDX-0002C, ¶101; JDX-0015C, 58, 82-83, 101-103, 111 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Sales-based allocations described herein apply
the ratios in the above table.

Facility expenses are allocated by the same cost centers described above with regards to

[REDACTED]

labor and capital. JDX-0002C, Exs. 1.1, 3.0; JDX-32C, Ex. 11C, ¶2. Therefore, the approach for plant and equipment is very similar to the approach described above for labor and capital. The expenses allocated to plant and equipment include [REDACTED]

[REDACTED] JDX-0002C, ¶164, Ex. 4.0. These expenses are allocated to the different groups or cost centers of Samsung in the ordinary course of business. JDX-0002C, ¶164. The amounts described herein are based on this internal allocation methodology. *Id.* These expenses are further allocated to the domestic industry products using the same sales-based methodology described above with regards to labor or capital.

Mr. Jarosz's challenges to the above allocation strategy are misplaced. First, Mr. Jarosz himself admitted repeatedly that he does not "understand the Samsung records at all." JDX-49C, 39-42, 44-46. When asked at his deposition regarding these concerns, Mr. Jarosz demonstrated his lack of familiarity with the underlying data, how to filter the data to obtain an appropriate base of expenses, and how to apply the [REDACTED] methodology to obtain the results that Ms. Rowe obtained. *Id.*

Second, Ms. Rowe's analysis and findings are supported by her report and SEA data. The calculation of investments and application of sales-based allocation methodology herein is accurate and reflective of SEA's business practices. The expenses and cost centers relied upon are sufficiently tied to the DI Products and constitute qualifying DI investments. As described below with regards to both labor or capital and plant and equipment, Ms. Rowe's DI analysis relied on an investment base of a proper scope, and the underlying activities of the selected groups and cost centers relate to the DI Products.

[REDACTED]

B. Samsung's Domestic Investments in Labor or Capital Satisfy Section 1337(a)(3)(B)

Ms. Rowe will testify that Samsung has made, and will continue to make, significant domestic investments in labor or capital with respect to the DI Products. This includes the cost of employees dedicated to the development of Samsung products and services, U.S.-specific market strategy and distribution, U.S.-specific product packaging, and customer service. SEA employs [REDACTED] direct employees and contractors, and invests [REDACTED] dollars in product strategy, management, planning, research, development, engineering, testing, compliance, quality control, technical support, sales, marketing, distribution, warehousing, service, warranty, repair, and replacement for Samsung mobile products in the U.S., including the WDI and PDI Products. JDX-0002C.

Over the period leading up to the complaint in this Investigation, from January 1, 2022 through November 30, 2025, Samsung invested over [REDACTED] in labor and capital associated with the domestic industry products practicing the '789 patent, and [REDACTED] in labor and capital associated with the domestic industry products practicing the '677 patent, the '675 patent, and the '359 patent. JDX-0002C, ¶18, Exs. 1.0, 1.2, 9.2, 10.1. These amounts are significant in the context of Samsung's mobile product investments. The labor and capital investments in the '789 patent make up [REDACTED] of SEA's labor and capital investments in all mobile products, and the labor and capital investments in the '359, '675, and '677 patent make up [REDACTED] of SEA's labor or capital investments in all mobile products. *Id.* A detailed analysis and allocation of SEA's labor or capital investments, along with an explanation of each department's work and employees, is provided below.

1. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-32C, Ex. 11C, ¶10; JDX-0015C, 128-129, 161-162. As of the end of November 2025, approximately [REDACTED] full-time employees worked in [REDACTED] in the US. JDX-0002C, ¶107, Ex. 9.3; JDX-32C, Ex. 11C, ¶10. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] [REDACTED] in [REDACTED] in the United States. JDX-0002C, ¶108, Ex. 3.1. Samsung's labor and capital investments in the [REDACTED] were primarily comprised of [REDACTED]. *Id.*

In total, Samsung invested approximately [REDACTED] in domestic investments in labor or capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶112, Ex. 3.0. PDI Product amounts are allocable to the '789 patent, and the WDI Product amounts are allocable to the other asserted patents. *Id.* Applying a sales-based allocation to Samsung's domestic investments in labor or capital for the [REDACTED] yields [REDACTED] allocable to the '789 patent;

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

2.

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶113; JDX-32C, Ex. 11C,

¶7. [REDACTED]

[REDACTED] JDX-0002C, ¶114; CX-1695C, 15-16. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶115; JDX-0015C, 9. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶115; JDX-0015C, 9-10. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶116; JDX-32C, Ex. 11C,

¶¶18-24; JDX-0045C, 13. [REDACTED] JDX-0002C, ¶115;

[REDACTED]

JDX-0015C, 9-10.

The [REDACTED] team is located in the United States. JDX-0002C, ¶117. As of the end of November 2025, [REDACTED] U.S. full time employees worked in this group. JDX-0002C, ¶117; JDX-32C, Ex. 11C, ¶8. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED]. JDX-0002C, ¶117, Exs. 9.3, 3.2. Samsung's labor and capital investments in the [REDACTED] group were primarily comprised of [REDACTED]. JDX-0002C, ¶118, Ex. 3.2. [REDACTED]. *Id.*

In total, Samsung invested more than [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶121, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic investments in labor and capital for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED], during the relevant timeframe. JDX-0002C, ¶¶112-121.

[REDACTED]

[REDACTED]

[REDACTED]

3. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶122; JDX-0015C, 114-

115, 121-122.

[REDACTED]

[REDACTED]

[REDACTED] JDX-0045C, 12.

All employees classified as belonging to the [REDACTED] are based in the United

States. JDX-0002C, ¶123; JDX-32C, Ex. 11C, ¶6; JDX-0045C, 11-12. As of the end of November

2025, [REDACTED] U.S. full time employees worked in this group. JDX-0002C, ¶123; JDX-32C, Ex. 11C, ¶7. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED]. JDX-0002C, ¶123. Samsung's labor and capital investments in the [REDACTED] group are primarily comprised of [REDACTED].

In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶127, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic investments in labor and capital for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED].

[REDACTED]. *Id.*

4. [REDACTED]

Samsung also has [REDACTED] employees focused on mobile products (including the DI Products) in the United States. *Certain Printing & Imaging Devices & Components Thereof*, Inv. No. 337-TA-690, Comm'n Op. at 27 (Feb. 17, 2011). [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶129; CX-1469C.

As of the end of November 2025, [REDACTED] U.S. full time employees worked in the U.S. [REDACTED] functions described above. JDX-0002C, Exs. 9.3, 3.4; JDX-32C, Ex. 11C, ¶9. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] [REDACTED]. JDX-0002C, Exs. 9.3, 3.4. Samsung’s labor and capital investments in the [REDACTED] group were primarily comprised of [REDACTED] [REDACTED]. JDX-0002C, Ex. 3.4.

In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶134, Ex. 3.0. Applying a sales-based allocation to Samsung’s domestic labor and capital investments in [REDACTED] yields [REDACTED] allocable to the ‘789 patent, and amounts allocable to the ‘359 patent, the ‘677 patent, and/or the ‘675 patent totaling [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

5. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

As of the end of November 2025, [REDACTED] U.S. full time employees worked in [REDACTED] in the United States. JDX-0002C, Exs. 9.3, 3.5; JDX-32C, Ex. 11C, ¶10-11. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED]

[REDACTED]. *Id.* Samsung's labor and capital investments in the [REDACTED] group were primarily comprised of [REDACTED]

[REDACTED]. JDX-0002C, Ex. 3.5.

In total, Samsung invested approximately [REDACTED] in domestic investments in labor

[REDACTED]

and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶140, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic labor and capital investments in the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶¶133-140; JDX-0015C, 133-136.

[REDACTED]

6. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

As of the end of November 2025, [REDACTED] U.S. full time employees worked in this group. JDX-0002C, ¶144, Ex. 9.3; JDX-32C, Ex. 11C, ¶10. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED]. *Id.* Samsung’s labor and capital investments in the [REDACTED] group are primarily comprised of [REDACTED]. JDX-0002C, ¶145, Ex. 3.6; JDX-0015C, 153-155.

In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶148, Ex. 3.0. Applying a sales-based allocation to Samsung’s domestic labor and capital investments in the [REDACTED] group yields [REDACTED] allocable to the ‘789 patent, and amounts allocable to the ‘359 patent, the ‘677 patent, and/or the ‘675 patent totaling [REDACTED]. JDX-0002C, ¶¶141-149.

[REDACTED]

[REDACTED]

[REDACTED]

7. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

As of the end of November 30, 2025, [REDACTED] U.S. full time employees worked in this group. *Id.* From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] in [REDACTED]. *Id.* Samsung's labor and capital investments in the [REDACTED]

[REDACTED]

[REDACTED] *Id.*

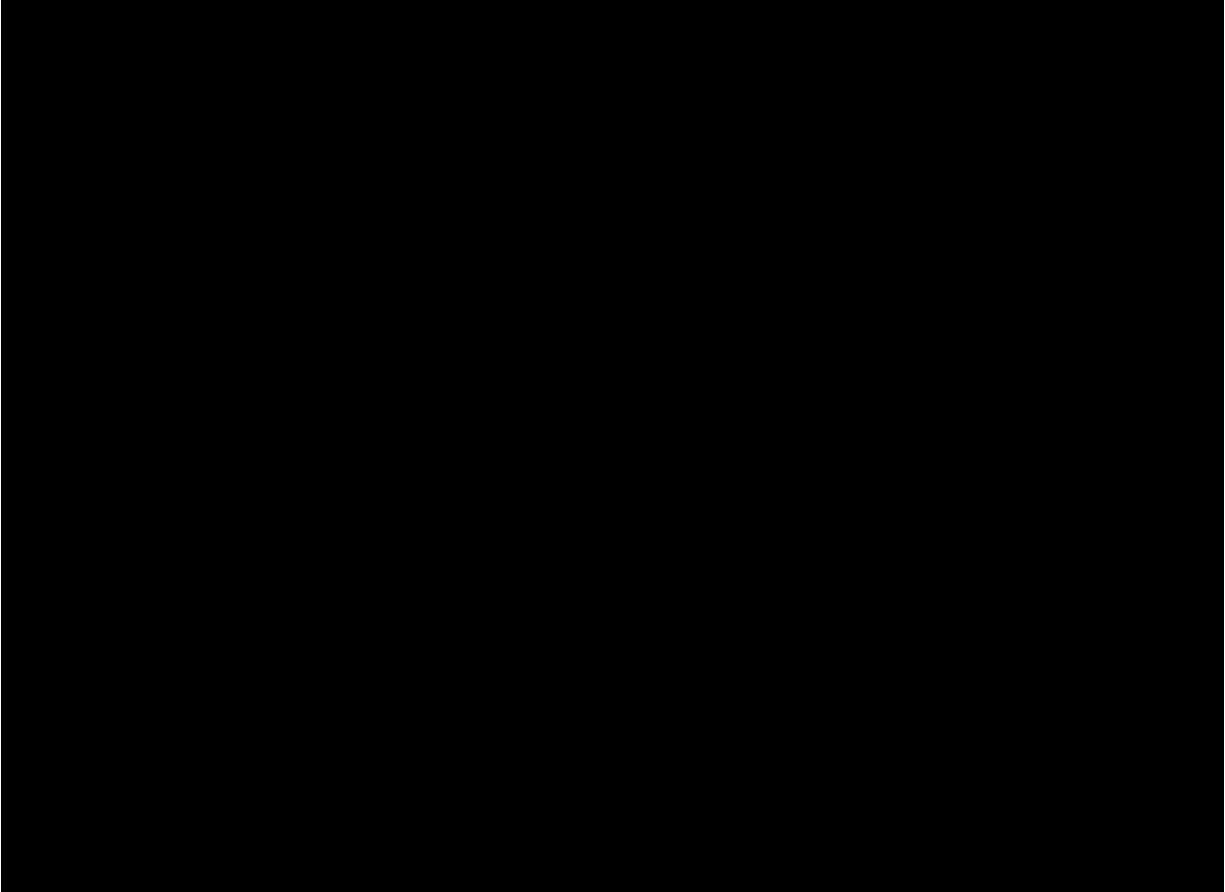
In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶160, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic investments in labor and capital for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]. JDX-0002C ¶¶147-161.

[REDACTED]

8. SEA's Total Domestic Labor and Capital Investments Related to the DI Products

Samsung's domestic investments in labor and capital for the domestic industry products for the '789 patent are summarized below:



JDX-0002C, Exs. 1.1, 3.0.

Samsung's domestic investments in labor and capital for the domestic industry products for the other asserted patents are summarized below:

[REDACTED]

C. Samsung's Domestic Investments in Plant and Equipment Satisfy Section 1337(a)(3)(A)

Samsung has made, and will continue to make, significant domestic investments in plant and equipment with respect to the domestic industry products. Over the period January 1, 2022 through November 30, 2025, Samsung invested approximately [REDACTED] in plant and equipment associated with the domestic industry products practicing the '789 patent, and [REDACTED] in plant and equipment associated with the domestic industry products practicing the '677 patent, the '675 patent, and the '359 patent. JDX-0002C, ¶19, Ex. 1.0. These amounts are significant in the context of Samsung's mobile product investments. *Id.* The domestic plant and equipment investments in the '789 patent make up [REDACTED] of SEA's plant and equipment investments

[REDACTED]

in all mobile products, and the domestic plant and equipment investments in the '359, '675, and '677 patents make up [REDACTED] of SEA's plant and equipment investments in all mobile products. *Id.*

The expenses allocated to plant and equipment include [REDACTED]

[REDACTED]. JDX-0002C, ¶164, Ex. 4.0. These expenses are allocated to the different groups or cost centers of Samsung in the ordinary course of Business, and are allocated by the same cost centers as described with regards to labor and capital. JDX-0002C, ¶¶163-164, Ex. 4.0. The amounts described below are based on this internal allocation methodology. JDX-0002C, ¶164, Ex. 4.0. These expenses are further allocated to the domestic industry products using the same sales-based methodology described with regards to labor and capital.

The following groups include plant and equipment investments related to the domestic industry products: [REDACTED]

[REDACTED]. JDX-0002C, ¶97.

1. [REDACTED]

[REDACTED] JDX-0002C, ¶165, Ex. 2.1.

The C&S team is primarily located in [REDACTED]. JDX-0002C, ¶166; Martinez Decl. ¶10; JDX-0045C, 9, 16; JDX-0015C, 161-162, 165-166; JDX-0045C, 21; RX-0411C; CX-1592C, 856, 859, 872-873; CX-1594C; CX-1597C, 958. [REDACTED]

[REDACTED]

office totals [REDACTED] and housed over [REDACTED] employees as of July 2025. *Id.* The [REDACTED]. *Id.* There are also [REDACTED] employees located in [REDACTED]. JDX-0002C, ¶167; JDX-0015C, 130-131; JDX-0045C, 22; RX-0411C. [REDACTED]

[REDACTED]

[REDACTED]. *Id.*

In total, Samsung invested approximately [REDACTED] in domestic plant and equipment in C&S between January 1, 2022 and November 30, 2025. JDX-0002C, ¶169, Ex. 2.0. Applying a sales-based allocation yields [REDACTED] allocable to the ‘789 patent, and amounts allocable to the ‘359 patent, the ‘677 patent, and/or the ‘675 patent totaling [REDACTED]. JDX-0002C, ¶¶168-169, Ex. 2.0.

[REDACTED]

2. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

JDX-0002C, ¶170, Ex. 2.2.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶171; JDX-0045C, 9, 12, 14-16, 20; RX-0411C; JDX-0015C, 160-161; CX-1510. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶173, Ex. 2.0. Applying a sales-based allocation yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶¶172-173, Ex. 2.0.

[REDACTED]

3. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶174, Ex. 2.3. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶175; JDX-0045C, 9, 14-16, 20-21;

RX-0411C; JDX-0015C, 12-14, 128-129, 160-161, 166-169; CX-1593C; CX-1596C; CX-1550.

Other locations include:

I [REDACTED]

[REDACTED]

[REDACTED]

I [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

I [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

I [REDACTED]

[REDACTED]

[REDACTED]

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED]

[REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶177, Ex. 2.0.

Applying a sales-based allocation to Samsung's domestic investments in plant and equipment for

[REDACTED]

the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]. JDX-0002C, ¶¶173-178; JDX-0045C, 9, 14-16, 20-21; RX-0411C; JDX-0015C, 12-14, 128-129, 160-161, 166-169; CX-1593C; CX-1596C; CX-1550.

[REDACTED]

4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶178, Ex. 2.4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶179; JDX-0045C, 9, 14, 16, 20-21; RX-0411C; JDX-0015C, 157, 168-169; CX-1593C; CX-1596C; CX-1550; JDX-0015C, 166, 169. [REDACTED] has [REDACTED] and housed [REDACTED] employees as of July 2025. *Id.*

[REDACTED]

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶181, Ex. 2.0. Applying a sales-based allocation to Samsung's domestic investments in plant and equipment for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED] [REDACTED]. JDX-0002C, ¶¶177-182; JDX-0045C, 9, 14, 16, 20-21; RX-0411C; JDX-0015C, 157, 168-169; CX-1593C; CX-1596C; CX-1550; JDX-0015C, 166, 169.

5. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶182, Ex. 2.5. [REDACTED]

[REDACTED] JDX-0002C, ¶183, Ex. 2.0; JDX-0015C, 160-161.

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶184, Ex. 2.0. Applying a sales-based allocation to Samsung's domestic investments in the [REDACTED]

[REDACTED]

group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]. JDX-0002C, ¶¶180-186; JDX-0015C, 160-161, 173; JDX-0045C, 18.

[REDACTED]

6. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶185, Ex. 2.6. [REDACTED]

[REDACTED] JDX-0002C, ¶186; JDX-0045C, 18, 21; JDX-0015C, 173; RX-0411C. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] . *Id.*

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶188, Ex. 2.0.

[REDACTED]

Applying a sales-based allocation to Samsung's domestic investments in plant and equipment for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]

JDX-0002C, ¶¶184-188; JDX-0045C, 18, 21; JDX-0015C, 160-161, 173; RX-0411C.

7. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶189, Ex. 2.7. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶190; JDX-0015C, 12-14, 173; JDX-0045C, 21; RX-0411C; CX-1598C; CX-1599C; CX-1602C; CX-1601C; CX-1604C. [REDACTED]

[REDACTED] *Id.*

[REDACTED]

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶192. Applying a sales-based allocation to Samsung's domestic investments in plant and equipment for the [REDACTED] groups yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]. JDX-0002C, ¶¶189-192; JDX-0015C, 12-14, 173; JDX-0045C, 21; RX-0411C; CX-1598C; CX-1599C; CX-1602C; CX-1601C; CX-1604C.

[REDACTED]

8. SEA's Total Domestic Investments in Plant and Equipment Related to the DI Products

Samsung's domestic investments in plant and equipment for the domestic industry products for the '789 patent are summarized below:



JDX-0002C, Exs. 1.1, 2.0.

Samsung's domestic investments in plant and equipment for the domestic industry products for the '359, '677, and '675 patents are summarized below:

JDX-0002C, Exs. 1.1, 2.0.

D. Samsung's Domestic Investments in Labor and Capital (Comprehensive)

In a more comprehensive view of labor and capital (where capital includes Samsung's domestic investments in plant and equipment), Samsung's domestic investments in labor and capital (comprehensive) in the '789 patent between January 1, 2022 through November 30, 2025 were approximately [REDACTED]:

[REDACTED]

JDX-0002C, Exs. 1.1, 2.0.

In a more comprehensive view of labor and capital (where capital includes Samsung's domestic investments in plant and equipment, Samsung's domestic investments in labor and capital (comprehensive) in the '359, '677, and '675 patents between January 1, 2022 through November 30, 2025 were more than [REDACTED]:

JDX-0002C, Ex. 1.1.

E. Samsung's Domestic Investments Are Significant And Substantial

Samsung's domestic investments in the DI Products are significant and substantial in the context of SEA's mobile division, in the context of Samsung's foreign expenditures, and in the context of the industry. Samsung's domestic investments are expected to continue.

The domestic investments in each of the asserted patents are significant. JDX-0002C, ¶22, Ex. 9.0. Samsung's domestic investments in labor or capital (comprehensive) represent approximately [REDACTED] for the DI Products, both for the '789 patent (Galaxy S22-S25 smartphones), and the '359, '675, and '677 patents (Galaxy Watches 4-8 and Ultra and Galaxy Ring). *Id.* When compared to SEA's overall investments in its mobile business, the domestic industry investments in the '789 patent make up over [REDACTED] of Samsung's investments in domestic plant and equipment and domestic labor or capital. JDX-0002C, ¶23, Ex. 9.0. Domestic

investments in the '359, '657, and '677 patents represent approximately [REDACTED] of Samsung's domestic investments in plant and equipment and labor or capital. *Id.*

1. Samsung's Domestic Investments Are Significant and Substantial In the Context of the Domestic Industry and SEA's Mobile Division

Altogether, Samsung's U.S. [REDACTED] from the DI Products comprised approximately [REDACTED] of Samsung's total U.S. mobile product [REDACTED]. JDX-0002C, Ex. 5.0.

For the '789 patent, Samsung's U.S. [REDACTED] from the smartphone DI Products comprised approximately [REDACTED] of Samsung's U.S. mobile product [REDACTED]. JDX-0002C, Ex. 5.0. For the other asserted patents, Samsung's U.S. [REDACTED] from the WDI Products comprised approximately [REDACTED] of Samsung's U.S. mobile product [REDACTED]. *Id.* The DI Products include a new product line for Samsung, the Galaxy Ring. The Galaxy Ring is Samsung's first smart ring product. *Id.* While the Samsung Galaxy Ring represents approximately [REDACTED] of Samsung's mobile product [REDACTED] for the period July 1, 2024 through December 31, 2025, it also represents a new form factor to the Samsung mobile product family. JDX-0002C, ¶203, Ex. 5.0; CX-1542.

Each of the net revenue percentages for the Samsung DI Products is significant when considered in the context of Samsung's overall U.S. mobile sales. Samsung mobile products make up a significant percentage of sales within the United States in general. Since 2020, Samsung has comprised approximately 20% to 30% of U.S. smartphone sales. JDX-0002C, ¶204; CX-1556; CX-1524; JDX-0015C, 33-34, 61-63; RX-0369C; JX-0047, 9-10. In addition to the Samsung Galaxy S series smartphones which are PDI Products, Samsung also sells the Z series line of foldables and the A series line, which is a lower-priced device. *Id.* Samsung tablets, some of which belong to Samsung's mobile product and group, made up 24% of tablet ownership in the United States as of September 2025. *Id.* In the context of these sales, the WDI Products making

[REDACTED]

up approximately [REDACTED] of overall [REDACTED] is significant. *Id.*

The work done by SEA with respect to the DI Products is significant and critical for the sale of these products in the United States. JDX-0002C, ¶205, Ex. 5.0; JDX-0015C, 49-51. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶206; JDX-0015C, 9-10, 36-37. [REDACTED]

[REDACTED] *Id.* The work done by SEA on the DI Products continues through the [REDACTED]. JDX-0002C, ¶207; JDX-0015C, 9-11.

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶208; JDX-0015C, 43, 45-46. [REDACTED]

[REDACTED]

The investments made by Samsung in the DI Products in labor and capital comprise a significant portion of Samsung's U.S. [REDACTED] of DI Products. Samsung's domestic investments in labor and capital (comprehensive) for the DI Products totaled more than [REDACTED] for the '789 patent and more than [REDACTED] for the other asserted patents from the period January 1, 2022 through November 30, 2025. JDX-0002C, ¶210, Ex. 1.1. Samsung's domestic investments made up approximately [REDACTED] of Samsung's [REDACTED] of PDI Products practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] of WDI Products practicing the other asserted patents. JDX-0002C, ¶¶210-211, Exs. 1.1, 9.0, 9.2, 10.0, 10.1.

Samsung investments in plant and equipment for the DI Products also comprise a

[REDACTED]

significant portion of Samsung's operating expenses associated with the DI Products sold in the United States. Samsung financial documents recording the sales of the DI Products also include

[REDACTED]. JDX-0002C, ¶212, Exs. 7.2, 7.3; JDX-0015C, 82-83, 86. [REDACTED]

[REDACTED] JDX-0002C, ¶¶212-213, Exs. 7.2, 7.3; JDX-0015C, 81-83, 86, 107; RX-0409C.

[REDACTED] JDX-0002C, ¶213, Ex. 9.1; JDX-0015C, 81-82, 107; RX-0409C. Samsung's domestic investments in plant and equipment made up approximately [REDACTED] of Samsung's [REDACTED] of PDI Products practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] of WDI Products practicing the other asserted patents. JDX-0002C, ¶¶213-214, Ex. 9.1; JDX-0015C, 51-52, 81-82, 107-108; RX-0409C.

Samsung's domestic investments in labor or capital (comprehensive) made up approximately [REDACTED] of Samsung's [REDACTED] of PDI Products practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] of WDI Products practicing the other asserted patents. JDX-0002C, ¶216; JDX-0015C, 81-83, 107-108; RX-0409C. This is indicative of a relatively significant amount of dedicated activity that is applicable to the DI Products, [REDACTED]

[REDACTED] *Id.*

The investments made by Samsung in the DI Products in plant and equipment comprise a significant portion of Samsung's total investments directed to the [REDACTED]

[REDACTED]

[REDACTED] divisions of SEA. JDX-0002C, ¶218, Ex. 9.1. SEA's overall plant and equipment investments in mobile products also include [REDACTED]. *Id.* Samsung's domestic investments in plant and equipment for the DI Products associated with the '789 patent comprised approximately [REDACTED] of total domestic investments in plant and equipment in 2022, and this grew to approximately [REDACTED] in 2024. JDX-0002C, ¶¶218-219, Ex. 9.1. [REDACTED]

[REDACTED]

[REDACTED]

The investments made by Samsung in the DI Products in labor or capital (comprehensive) comprise a significant portion of Samsung's total labor and capital investments directed to the [REDACTED] of SEA. JDX-0002C, ¶220, Ex. 9.0. SEA's domestic labor and capital investments, too, [REDACTED]. *Id.* Samsung's domestic investments in labor and capital (comprehensive) for the PDI Products associated with the '789 patent comprised approximately [REDACTED] of total domestic investments in labor and capital and plant and equipment in 2022, and this grew to approximately [REDACTED] in 2024. JDX-0002C, ¶¶220-221, Ex. 9.0. [REDACTED]

[REDACTED]

[REDACTED]

Further, the significance of Samsung's investments in the context of mobile services may be seen by comparing the relative headcounts of the employees dedicated to the DI Products to the overall headcount [REDACTED] divisions of SEA. The headcount attributable to the DI Products comprised more than [REDACTED] of the overall domestic headcount for SEA employees working on mobile products as of the end of November 2025. JDX-0002C, ¶¶222-

[REDACTED]

224, Ex. 9.3; CX-1469C; JDX-0015C, 108-109.

2. Samsung's Domestic Investments Are Significant and Substantial In the Context of Samsung's Foreign Expenditures

[REDACTED]

[REDACTED] JDX-0002C, ¶225; JDX-0015C, 91. [REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED]

Samsung's domestic investments in the DI Products are significant in the context of foreign costs associated with the DI Products. The investments made by Samsung in the DI Products in labor and capital (comprehensive) comprise a significant portion of Samsung's U.S. cost of goods sold for the DI Products. Samsung's domestic investments in labor and capital (comprehensive) for the DI Products totaled more than [REDACTED] for the '789 patent and more than [REDACTED] for the other asserted patents from January 1, 2022 through November 30, 2025. JDX-0002C, ¶227, Exs. 1.1, 9.0. Samsung's domestic investments made up almost [REDACTED] of Samsung's [REDACTED] for DI Products sold in the U.S. practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] for DI Products sold in the U.S. practicing the other asserted patents. JDX-0002C, ¶¶227-228, Exs. 1.1, 9.0.

The DI Products are qualitatively and quantitatively significant to Samsung in a global context. SEC is one of the largest providers by volume of wearables and smartphones in the world, and SEA is one of the top providers by volume of wearables and smartphones in the United States. JDX-0002C, ¶229; JDX-32C, Ex. 11C, ¶1-2; CX-1695C, 15; JDX-0015C, 37-38, 49. The U.S. is a major market for Samsung with respect to the DI Products. *Id.* Samsung's net revenues

associated with the '789 patent made up approximately [REDACTED] of Samsung's [REDACTED] associated with the '789 patent from the DI Products. Samsung's net revenues associated with the other asserted patents made up approximately [REDACTED] of Samsung's [REDACTED] associated with the other asserted patents from the DI Products. JDX-0002C, ¶¶230-231; CX-1696C, 24; JDX-0021C, 44-46, 74-75. Given that Samsung broadly operates in 76 countries, having over [REDACTED] for a group of products associated with one specific country is significant. JDX-0002C, ¶232; CX-1512.

3. Samsung's Domestic Investments Are Significant and Substantial in the Context of the Industry

Samsung's DI Products are an important part of the U.S. mobile product competitive environment. By 2020, Samsung smartphones comprised approximately 25% of U.S. smartphone sales, competing primarily with Apple, which comprised approximately 50% of smartphone sales. JDX-0002C, ¶234, Ex. 9.6; CX-1556; CX-1524; CX-1552. Since 2020, Samsung has remained relatively stable, comprising approximately 20% to 30% of U.S. smartphone sales. *Id.* The domestic industry smartphone products, the Galaxy S series, are Samsung's flagship smartphones. *Id.* Samsung is also leading provider of wearable devices in the United States. JDX-0002C, ¶235; CX-1558C; CX-1554; CX-1369.

The investments made by Samsung into the DI Products are qualitatively significant and substantial. SEA's U.S. activities and investments are critical to the local development, commercialization, and marketing of the DI Products in the United States. JDX-0002C, ¶236; CX-1696C, 24; JDX-0015C, 50-51.

Service to mobile product customers in the United States is also significant, as it enables Samsung to provide timely and effective service to its customers, and is an important component of Samsung's operations. JDX-0002C, ¶237; CX-1696C; JDX-32C, Ex. 11C, ¶11; JDX-0015C,

[REDACTED]

120, 140, 142-146; JDX-0045C, 49. The [REDACTED] team at SEA provides service to mobile product customers in the United States. *Id.* [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

Samsung's U.S. presence extends further through its partnership with U.S.-based institutions in connection with the DI Products. Samsung's [REDACTED] activities related to [REDACTED] also include [REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶238; CX-1696C, 25; CX-0959C.

4. Samsung's Domestic Investments Are Expected To Continue

Samsung's commitment to its products and customers in the United States are ongoing.

[REDACTED]

[REDACTED] JDX-0002C, ¶240; JDX-0015C, 22, 26-29; CX-1695C. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶241; JDX-0015C, 22, 27-28.

[REDACTED]

[REDACTED] *Id.*

X. REMEDY & BONDING

The appropriate remedies in this Investigation are a permanent limited exclusion order ("LEO") and a permanent cease-and-desist order ("CDO") against Respondents, their subsidiaries, related companies, and agents. These remedies are warranted and necessary to protect Samsung's DI from Respondents' unfair acts. Oura has presented no evidence to support any exemptions or

delays in these remedial orders.

A. Limited Exclusion Order (LEO)

The appropriate remedy in the event of a violation finding under 19 U.S.C. § 1337(d)(1) is a permanent LEO directed to each Respondent (including its subsidiaries, predecessors, affiliates, agents, successors, and assigns) barring and excluding from entry into the U.S. wearable devices that infringe one or more of the Asserted Claims. *See Certain Fitness Devices, Streaming Components Thereof, & Sys. Containing Same*, 337-TA-1265, Comm’n Op. at 75 (Mar. 23, 2023) (holding that the LEO applies to covered articles unless products are “explicitly adjudicated as noninfringing”). If the Commission finds a violation of Section 337, an exclusion order “shall” issue against all of Respondents’ infringing products. *See* 19 U.S.C. § 1337(d)(1).

Respondents have not carried their burden to show that the LEO should have delays, carveouts, or exemptions. *See, e.g., Certain Automated Media Library Devices*, Inv. No. 337-TA-746, ID at 122, 2012 ITC LEXIS 1823, at *207 (June 20, 2012). For instance, Respondents have asserted that any LEO should contain a twelve-month transition period but have not provided any factual basis to justify implementation of such a period here. *See, e.g., Certain Mobile Devices, Associated Software, & Components Thereof*, Inv. No. 337-TA-744, Comm’n Op., 2012 WL 3715788, at *15 (June 5, 2012). Indeed, Respondents have no non-accused ring products to which they could shift production and no noninfringing alternative has been established. *See id.* Respondents also have not identified any third-parties who would be adversely affected or damaged by an LEO. *See Certain Mobile Devices*, 2012 WL 3715788, at *15. Further, there is no evidence that consumer demand cannot be satisfied by competing ring products sold by Samsung or other licensed entities. *Id.*

Respondents have also failed to establish that service and repair exceptions are warranted.

[REDACTED]

[REDACTED]

“The Commission [] has declined to issue service and repair exemptions to limited exclusion orders where the record contains insufficient evidence regarding the burdens and expenses that would be imposed on third parties in the absence of an exemption.” *Certain Wet Dry Surface Cleaning Devices*, Inv. No. 337-TA-1304, 2023 WL 3093539, *2-3 (ITC Apr. 7, 2023) (collecting cases). Such is the scenario here. Although Respondents have provided testimony that Accused Products may be subject to warranty obligations, Respondents have failed to establish how an LEO would render Respondents unable to satisfy any such obligations and have not shown any detrimental effect on customers without a service and repair exception. *Id.* [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See, e.g., JX-27C (Murrin), 77:11-78:9, 90:23-91:9.*

In view of the dearth of information about what the actual impact may be on consumers, and no evidence that consumer issues cannot be adequately redressed through refunds, a service and warranty repair exemption is not warranted. *See, e.g., Certain Magnetic Data Storage Tapes and Cartridges Containing the Same (II)*, Inv. No. 337-TA-1076, ID at 174 (Oct. 25, 2018), *affirmed by Comm’n Op. at 61-62* (June 20, 2019) (denying exemption because respondent failed to provide sufficient evidence). However, if one is issued, the cutoff date should be “the date the Commission’s orders issue” when “the public is put on notice of a violation.” *Certain Light-Based Physiological Measurement Devices & Components Thereof*, 337-TA-1276, Comm’n Op. at 107 n.72 (Nov. 14, 2023) (EDIS ID 808521) (dissenting views of Commissioner Kearns).

B. Cease and Desist Order (CDO)

The appropriate remedy in the event of a violation finding under 19 U.S.C. § 1337(d)(1) is

[REDACTED]

additionally a CDO directed to each Respondent barring the importing, selling for importation, marketing, demonstrating, distributing, repairing, refurbishing, offering for sale, selling after importation, or transferring inventory to the United States of all wearable devices that infringe one or more of the Asserted Claims. Respondents have commercially significant inventories, warranting CDOs to prevent Respondents from undercutting the remedy provided by an LEO. *See, e.g., Certain Digital Models, Digital Data, & Treatment Plans for Use in Making Incremental Dental Positioning Adjustment Appliances, the Appliances Made Therefrom, & Methods of Making the Same*, Inv. No. 337-TA-833, Comm’n Op. at 147 (Apr. 9, 2014). “[T]here is no lower limit on the number of articles a domestic respondent must have in inventory before that inventory can be found to be ‘commercially significant’” and the presence of units “held in ‘distribution centers’ demonstrates the units are meant for and capable of being distributed to consumers throughout the United States thereby harming” a complainant. *Certain Agricultural Vehicles and Components Thereof*, Inv. No. 337-TA-487, Comm’n Op. at 14 (Sept. 24, 2004); *Certain Audio Players and Components Thereof (II)*, Inv. No. 337-TA-1330, ID on Violation and RD at 194 (Sept. 15, 2023).

Respondents hold commercially significant domestic inventories of its Accused Products warranting a CDO. Specifically, Oura does not dispute that it maintains commercially significant inventory of the accused Oura Ring products in the US. JX-74C at 2-4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

C. Bonding

If the Commission enters an LEO or CDO, a respondent may continue to import and sell its products during the PRP under a bond in an amount “sufficient to protect the complainant from any injury.” 19 U.S.C. § 1337(j)(3). A bond is warranted here to protect Samsung from injury. There is direct competition between Samsung’s DI Products and the Accused Products. For instance, Samsung considers the Accused Products to be direct competitors. RX-156C, RX-242C, JDX-2C, 33. As a result, there is a likelihood of injury to Samsung in the form of displaced sales, reduced market share, and/or price undercutting.

In the co-pending 1468 Investigation, Oura and its economic expert, John Jarosz, contended that [REDACTED] [REDACTED] set an established royalty rate for bond of [REDACTED] [REDACTED]. *See* CX-1697C, ¶¶201-203. Although Samsung disagrees that the alleged “established royalty rate” is so established, and disagrees with the underlying rationale for applying such a royalty rate to the accused products in the 1468 Investigation, to the extent the ALJ in that Investigation recommends and the Commission adopts Oura’s proposed rate as the established rate associated with the Oura Ring products, that rate should apply in this Investigation to the Galaxy Ring product as well.

XI. CONCLUSION

As explained herein, the evidence will show that a violation of Section 337 has occurred, and the ALJ should recommend and appropriate LEO, CDO, and bond to protect Samsung’s domestic industry and curtail infringement of the Asserted Claims.

Dated: August 10, 2026

Respectfully submitted,

/s/ D. Sean Trainor

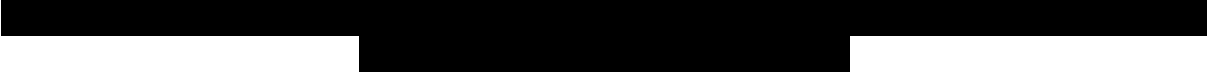
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CERTIFICATE OF WORD COUNT

The undersigned certifies that this brief complies with the word limitation set forth in Order No. 11 regarding pre-hearing briefs. The certified word count includes footnotes and excludes tables of contents, authorities, abbreviations, and asserted claims, words in figures, the word count certificate, signature block, and the certificate of service.

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/s/ D. Sean Trainor
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CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 10, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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PUBLIC VERSION

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

RESPONDENTS' PRE-HEARING BRIEF

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TABLE OF ABBREVIATIONS

Abbreviation	Description
'359 Patent	U.S. Patent No. 10,642,359
'675 Patent	U.S. Patent No. 10,231,675
'677 Patent	U.S. Patent No. 10,945,677
'789 Patent	U.S. Patent No. 10,978,789
Oura	Respondents Ouraring Inc. and Oura Health Oy, collectively
Samsung	Complainants Samsung Electronics America, Inc. and Samsung Electronics Co., Ltd., collectively
Asserted Patents	The '359 Patent, '675 Patent, '677 Patent, and '789 Patent, collectively
POSITA	A person of ordinary skill in the art at the time of the claimed invention
PCB	Printed Circuit Board
ALJ	Administrative Law Judge
CAD	Computer-Aided Design
ID	Initial Determination
IPR	Inter Partes Review
LED	Light Emitting Diode
LEO	Limited Exclusion Order
MCU	Microcontroller Unit
PGR	Post Grant Review
PPG	Photoplethysmography
Tr.	Deposition Transcripts
U.S. / US	United States

PUBLIC VERSION

Abbreviation	Description
USPTO / PTO	United States Patent and Trademark Office
CSUCE	Complainant's Statement of Undisputed Claim Elements

TABLE OF SAMSUNG'S ASSERTED¹ CLAIMS

'675 Patent (claims 13 and 15)	
[13.pre]	A method comprising:
[13.a]	determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;
[13.b]	acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body
[13.c]	activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;
[13.d]	detecting a biometric information of the user using the activated at least one second sensor;
[13.e]	during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and
[13.f]	in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.
[15]	The method of claim 13, further comprising: acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and activating the at least one second sensor based on at least a part of the additional information.

'677 Patent (claims 1-3 and 9)	
[1.pre]	A wearable electronic device comprising:
[1.a]	a motion sensor;
[1.b]	one or more optical sensors includes a light emitting unit and a light receiving unit; and
[1.c]	at least one processor configured to:
[1.d]	obtain, using the motion sensor, a first motion signal corresponding to the wearable electronic device, prior to a biological signal being obtained using the one or more optical sensors,
[1.e]	emit light using the light emitting unit based at least in part on a determination that the first motion signal satisfies a specified condition,
[1.f]	obtain the biological signal corresponding to a user using the light receiving unit based at least in part on reflected light which the light is reflected on the user,

¹ Claim 6 of the '789 Patent is not "asserted" as a basis of alleged infringement, but is the basis of Samsung's allegations of domestic industry for the '789 Patent. Claim 1 of the '789 Patent is not asserted in any sense, yet is the independent claim on which claim 6 depends.

'677 Patent (claims 1-3 and 9)	
[1.g]	obtain, using the motion sensor, a second motion signal corresponding to the wearable electronic device during the obtaining of the biological signal, and
[1.h]	refrain from the emitting of the light, based at least in part on a determination that the second motion signal does not satisfy the specified condition.
[2.a]	The wearable electronic device of claim 1, wherein the at least one processor is further configured to: determine whether the wearable electronic device is attached to the user using the one or more optical sensors; and
[2.b]	perform the emitting of the light further based at least in part on a determination that the wearable electronic device is attached to the user.
[3]	The wearable electronic device of claim 2, wherein the at least one processor is further configured to: perform the determining based at least in part on a determination that the first motion signal satisfies a specified condition.
[9.pre]	A wearable electronic device comprising:
[9.a]	a first sensor;
[9.b]	a second sensor; and
[9.c]	at least one processor configured to:
[9.d]	obtain, using the first sensor, first information corresponding to movement of the wearable electronic device,
[9.e]	activate the second sensor based at least in part of the movement,
[9.f]	obtain, using the activated second sensor, second information corresponding to biological signal related to a user during the obtaining of the first information, and
[9.g]	refrain from the obtaining of the second information using the activated second sensor based at least in part on a determination that the first information satisfies a specified range.

'359 Patent (claims 1 and 4)	
[1.pre]	A wearable device comprising:
[1.a]	a motion sensor;
[1.b]	a biological sensor; and
[1.c]	a controller configured to:
[1.d]	obtain a movement signal of an object using the motion sensor, and a biological signal of the object using the biological sensor,
[1.e]	determine, based on an analysis of the movement signal, whether to perform a specified function of the wearable device using the biological signal, and
[1.f]	perform the specified function using a select portion of the biological signal obtained during a select period, of the movement signal, determined to correspond to a specified condition.
[4]	The wearable device of claim 1, wherein the controller is configured to determine the biological signal to be invalid, irrespective of the movement signal, in response to the magnitude of the biological signal not satisfying a second threshold value.

'789 Patent (claims 6, 7, and 9)	
[1.pre]	A portable communication device comprising:
[1.a]	a housing including a first conduction portion forming a first portion of a side surface of the portable communication device and a second conduction portion forming a second portion of the side surface, the first conduction portion operating as a first antenna and the second conduction portion operating as a second antenna;
[1.b]	a wireless communication circuitry; and
[1.c]	a first printed circuit board (PCB) including:
[1.d]	a first PCB portion;
[1.e]	a second PCB portion in contact with the first PCB portion and being more flexible than the first PCB portion;
[1.f]	a third PCB portion in contact with the second PCB portion and being less flexible than the second PCB portion;
[1.g]	a fourth PCB portion in contact with the third PCB portion and being more flexible than the third PCB portion; and
[1.h]	a plurality of lines located from the first PCB portion to the fourth PCB portion through the second PCB portion and the third PCB portion, the plurality of lines including a first ground line, a second ground line at least partially spaced apart from the first ground line, a first signal line located between the first ground line and the second ground line, and a second signal line located between the first signal line and the second ground line, the first signal line electrically connected with the first antenna and the wireless communication circuitry, and the second signal line electrically connected with the second antenna and the wireless communication circuitry.
[6.pre]	The portable communication device of claim 1, further comprising:
[6.a]	a second PCB on which the wireless communication circuitry is located,
[6.b]	wherein the first ground line and the second ground line are electrically connected with a ground member located in the second PCB, or wherein the first ground line and the second ground line are electrically connected with a ground member located in the first PCB portion.
[7.pre]	A portable communication device comprising:
[7.a]	a first electronic component;
[7.b]	a second electronic component; and
[7.c]	a printed circuit board (PCB) electrically connected with the first electronic component and the second electronic component, the PCB including:
[7.d]	a first rigid PCB portion;
[7.e]	a first flexible PCB portion in contact with the first rigid PCB portion;
[7.f]	a second rigid PCB portion in contact with the first flexible PCB portion; and
[7.g]	a second flexible PCB portion in contact with the second rigid PCB portion,
[7.h]	wherein each of the first rigid PCB portion and the second rigid PCB portion includes: a first insulating layer including a first material and forming a first exterior surface of each of the first rigid PCB portion and the second rigid PCB portion;
[7.i]	a first conduction layer located on or above the first insulating layer;

'789 Patent (claims 6, 7, and 9)	
[7.j]	a second insulating layer located on or above the first conduction layer and having a first thickness;
[7.k]	a second conduction layer located on or above the second insulating layer; and
[7.l]	a third insulating layer including the first material and located on or above the second conduction layer, the third insulating layer forming a second exterior surface of each of the first rigid PCB portion and the second rigid PCB portion, and
[7.m]	wherein each of the first flexible PCB portion and the second flexible PCB portion includes: a first insulating layer including a second material different from the first material and forming a first exterior surface of each of the first flexible PCB portion and the second flexible PCB portion;
[7.n]	a first conduction layer located on or above the first insulating layer and being electrically connected with the first conduction layer of first rigid PCB portion and the first conduction layer of the second rigid PCB portion;
[7.o]	a second insulating layer located on or above the first conduction layer and having a second thickness thinner than the first thickness;
[7.p]	a second conduction layer located on or above the second insulating layer and being electrically connected with the second conduction layer of the first rigid PCB portion and the second conduction layer of the second rigid PCB portion; and
[7.q]	a third insulating layer including the second material and located on or above the second conduction layer, the third insulating layer forming a second exterior surface of each of the first flexible PCB portion and the second flexible PCB portion.
[9]	9. The portable communication device of claim 7, wherein each of the first flexible PCB portion and the second flexible PCB portion includes a fourth insulating layer located between the second conduction layer and the third insulating layer, and a third conduction layer located between the third insulating layer and the fourth insulating layer.

I. INTRODUCTION

Founded in 2013, Oura was instrumental in creating the smart ring market. Oura has released five generations of the Oura Ring since 2015, most recently launching its latest generation (the Ring 5) on May 28, 2026. Oura's innovation has been widely recognized across the industry, and it continues to innovate to provide cutting edge smart rings to consumers.

Samsung was a comparatively later entrant into the smart ring market. Prior to launching its first Galaxy Ring in July 2024, Samsung preemptively attacked Oura's intellectual property by first filing an unsuccessful declaratory judgment action against Oura in May, 2024, followed by twelve post-grant proceedings in the Patent Office. These post-grant proceedings were overwhelmingly unsuccessful, and Oura's intellectual property has withstood multiple challenges. As Samsung's barrage dissipated, Oura sued Samsung in the ITC to protect its intellectual property and domestic industry from Samsung's importation of infringing smart rings, a proceeding that is currently pending. *See* Inv. No. 337-TA-1468.

By all indications, the present Investigation was filed as a retaliatory suit in the ongoing dispute between the parties. But, as might be unsurprising from a later market entrant, Samsung asserts weak patents. The Oura Ring Gen. 1, released in the United States in 2015, anticipates or renders obvious three of the four asserted patents and has closely similar features as are now accused by Samsung of infringement. Additionally, three of the four asserted patents are directed to abstract concepts applicable to generic wearable devices and are therefore patent ineligible under 35 U.S.C. § 101. Published patents, patent applications, and publications furthermore act as prior art to anticipate or render obvious each of the asserted patents. And given differences between claims written to generic wearable devices and the accused Oura Gen. 4 ring, Samsung cannot carry its burden to show infringement; it did not even assert infringement against Oura's alternative Ring 5 and [REDACTED] rings.

Samsung's economic domestic industry case fares no better. Samsung frames its EDI investments in terms of the Galaxy Watches and Ring for the '359, '677, and '675 Patents, and smartphones for the '789 Patent (but not the Galaxy Watches or Ring). But Samsung claims an EDI for these categories based on investments made by SEA and under only subsections (A) (plant and equipment) and (B) (labor and capital). To quantify its EDI, Samsung utilizes a flawed allocation based on overstated investments by SEA. SEA is the U.S. sales arm for SEC. SEA's work only comes in for the [REDACTED]

[REDACTED]. Samsung admits that the investments it claims for EDI are [REDACTED]

[REDACTED]. And those efforts are very limited; for example, SEA [REDACTED] before their U.S. launch. Most of these [REDACTED] are related to [REDACTED] which means they do not apply to the DI Products that are [REDACTED], such as all DI Rings and about [REDACTED] of DI Watches. Thus, Samsung will not be able to prove a sufficient domestic industry.

In view of the myriad flaws in Samsung's case, following the evidentiary hearing, Oura expects to argue that no violation of Section 337 has occurred.

II. BACKGROUND

A. Procedural History

On December 15, 2025, Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. filed a complaint under Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 ("Section 337"), against the Oura Respondents. (EDIS Doc. ID 866474). Samsung filed a supplement to its complaint on December 31, 2025 (EDIS Doc. ID 867722), and an amended complaint on January 5, 2026. (EDIS Doc. ID 867832).

Thus, Samsung has not demonstrated any nexus between any of its alleged secondary considerations of non-obviousness and any of the asserted claims in this Investigation.

IX. LACK OF ECONOMIC DOMESTIC INDUSTRY

Samsung has not proven an economic domestic industry (“EDI”) relating to the DI Products. 19 U.S.C. § 1337(a)(2). It has not properly allocated its investments on a patent-by-patent basis, which the Commission requires to preclude investments toward a product that practices one patent from counting toward investments in a patent which that product does not practice. *Zircon Corp. v. Int’l Trade Comm’n*, 101 F.4th 817, 822 (Fed. Cir. 2024); *see also id.* at 826-27 (noting that Section 337 relief is provided only on the patents for which EDI is proven). Samsung has framed its EDI investments in terms of the following DI Product categories:

- The **’359, ’677, and ’675 Patents**: DI Ring and DI Watches
- The **’789 Patent**: DI Phones

Samsung claims an EDI for these categories based on only the investments made by SEA and under only subsections (A) (plant and equipment) and (B) (labor and capital), not (C) (exploitation). Samsung served a report on EDI by Julia Rowe (JDX-0002C), but she fails to show an EDI through “credible and reliable evidence.” *Certain Artificial Eyelash Extension Sys., Prod. & Components Thereof*, Inv. No. 337-TA-1226, Comm’n Op. at 48 (Oct. 24, 2022). There is insufficient evidence to properly assess Samsung’s U.S. investments related to the DI Products, and Mr. Jarosz will testify that the available evidence does not show a qualifying, significant EDI.

A. Samsung Relies on Expenses Incurred by [REDACTED] Subsidiary SEA

There is a fundamental disconnect between the SEA investments Complainants rely on in attempting to satisfy economic domestic industry and the rights (or lack thereof) SEA has to practice the Asserted Patents. Samsung relies solely on expenses incurred by SEC’s subsidiary SEA. But [REDACTED] ownership of the Asserted Patents. JX-0049C (No. 13).

Despite repeated opportunities to do so throughout this Investigation, Samsung has never asserted SEA's rights in the Asserted Patents. None of the Complaint, the Amended Complaint, or the exhibits thereto claim SEA's rights in the Asserted Patents. Am. Compl. ¶5 (EDIS ID 867832); Compl. Exs. 10C (EDIS ATT ID 2463877), 11C (EDIS ATT ID 2463877). Throughout discovery, Oura sought complete information about any rights to the patents, but Samsung again failed to claim that SEA has any rights. JX-0049C (No. 13); JX-0047C (No. 21). Samsung's corporate witness on licensing could confirm only that SEA is a wholly owned subsidiary of SEC. JX-0018C (M. Kim) at 69:8-15. The Commission "consistently exclude[s]" expenses related to a patent-protected product incurred by a complainant that does not have rights to that patent. *Certain Power Semiconductors*, Inv. No. 337-TA-1308, ID at 116-17 (collecting cases) (May 18, 2023) (EDIS Doc. ID 798314), *aff'd* by Comm'n Notice at 2 (Jul. 17, 2023) (EDIS Doc. ID 800437).

Samsung has offered no facts establishing SEA has any rights to the Asserted Patents, whether express or implied. Any belated attempt to claim an implied license should be rejected because Oura would be substantially prejudiced by such a late claim. Had Samsung made such a claim during discovery Oura could have explored *if*, for example, whether (1) SEA's claimed investments were undertaken pursuant to an implied license with sublicensing rights, (2) SEC has a practice of granting implied, broad patent rights to subsidiaries, and (3) other Samsung subsidiaries, such as non-Complainant Samsung Research America ("SRA") has rights to the Asserted Patents. If SRA or other subsidiaries have those broad rights, then SEC and SEA do not have "all substantial rights" to the patents required for statutory standing here. *Lone Star Silicon Innovations LLC v. Nanya Tech. Corp.*, 925 F.3d 1225, 1228 (Fed. Cir. 2019); *see also Certain Active Matrix Organic Light-Emitting Diode Display Panels & Modules for Mobile Devices, &*

Components Thereof, 337-TA-1351, Comm’n Op. at 14 (May 15, 2024) (EDIS ID 821542) (“*Certain Active Matrix Panels*”).

There is no evidence from Samsung that SEA has any rights to the Asserted Patents. Samsung’s discovery responses and exhibit to the complaint that purport to disclose full information about licensees, none of which identifies SEA, justify a finding that SEA’s claimed investments were not made pursuant to a proper license. *See* Rule 210.33(b)(1). Samsung has not responded to these points in its contentions, waiving its position. *See* JX-0049C; JX-0047C.

B. Samsung’s Sales-Based Allocation Method Is Unreliable

Samsung uses a sales-based allocation to create its claimed investments, which is based on a blanket application of that allocation to all expenses within [REDACTED] that are assigned to Samsung’s “[REDACTED].” This allocation is improper, as set out below.

1. Samsung’s Accounting Methodology: Expenses

SEA’s expenses, which are solely for U.S. commercialization, are organized under three nested frameworks, described below. RX-0959.7-12.

First, at the highest level is the [REDACTED] labeled “[REDACTED].” JX-0047.10. These [REDACTED] are [REDACTED]. CX-1469C ([REDACTED]). Samsung provided definitions for some: [REDACTED] [REDACTED]. JX-0016C (Martinez) at 98:1-10. [REDACTED] JX-0016C (Martinez) at 97:5-25; RX-0959.9-10. The mobile products covered [REDACTED] include at least phones, tablets, watches, and earbuds, and includes the three types of DI Products (S Phones, Watches, and Ring). RX-0378C (Sheppard) at 147:18-148:4; JX-0016C (Martinez) at 61:11-23. [REDACTED] JDX-0053C (Rowe) at 132:6-10. [REDACTED]

[REDACTED].” JX-0047C.9-10. However, [REDACTED]
 [REDACTED]. [REDACTED]
 [REDACTED]. JX-0016C (Martinez) at 97:5-25; CX-1469C ([REDACTED]
 [REDACTED], such as (example only) [REDACTED],
 which Samsung did not identify as one of the [REDACTED] purportedly mobile-related cost centers)).
 [REDACTED]. JDX-0002C (Rowe) ¶96; CX-1469C ([REDACTED]
 [REDACTED], similarly showing expenses for cost centers not identified
 by Samsung as being related to mobile products).

Second, SEA has created [REDACTED]. [REDACTED]. CX-1469 (“[REDACTED]”). These correspond to the [REDACTED] presented in § III.B of Samsung’s EDI contentions and the [REDACTED] investment categories or “departments” presented by Ms. Rowe. RX-0959C; JDX-0002C (Rowe) ¶¶16, 97. Ms. Rowe did not know how these [REDACTED] groups were assigned and “assume[d],” without asking or seeing evidence, that Mr. Martinez had spoken to the person who performed this selection. JDX-0053C (Rowe) at 136:11-137:21.

Third, SEA identifies [REDACTED]
[REDACTED]. JX-0047C.10 Each [REDACTED]. CX-
1469C ([REDACTED]).

The source of Samsung's claimed investments is a single spreadsheet that it represents as containing only SEA expenses. CX-1469C; *see also* JX-0047C.10-12 (describing CX-1469C as "[redacted]"). The "[redacted]"

JX-0047C.11. However, Ms. Rowe clarifies that CX-1469C contains information outside of SEA's mobile division. JDX-0053C (Rowe) at 109:18-110:3, 116:16-22. [REDACTED]

██████████. JX-0047C.12. This data is represented in the pivot tables in tabs “██████████
██████████” *Id.*

2. Samsung's Flawed Allocation

DI investments must be reasonably allocated to patent-practicing products so that the Commission can determine whether there is a significant qualifying domestic industry for each article that (allegedly) practices the patent and whether, accordingly, there is a significant domestic industry for each Asserted Patent. *Zircon*, 101 F.4th 817 at 822, 826-27. Mr. Jarosz will testify that Samsung's use of a blanket allocation across unassociated expense categories does not satisfy the Section 337 standards.

Samsung and Ms. Rowe rely entirely on investments made within any [REDACTED] group, which they allocated to the DI Products using a blanket U.S.-sales-based allocation. JDX-0046C.20-21, .25-27. Ms. Rowe used a revenue-based allocation, resulting in allocation factors slightly lower than Samsung's. JDX-0002C (Rowe) ¶101. She admitted that Samsung may [REDACTED] but would not identify which. JDX-0053C (Rowe) at 33:16-42:5.

	2022	2023	2024	2025	Total
DI Phone (Rowe - revenue)					
DI Watch (Rowe - revenue)					
DI Ring (Rowe - revenue)					

a) Sales-Based Allocation Results in Improper Aggregation

Although a sales-based allocation may be a *convenient* way for Samsung to attribute expenses incurred [REDACTED] (only one of which is specific to mobile products) to the DI Products, it is not sufficient to satisfy its Section 337 burden. As Mr. Jarosz will testify, Samsung's sales-based allocation of investments in the [REDACTED] is too flawed to be reliable because it improperly sweeps in investments not associated with the DI Products and lacks "sufficient[] ex[planation] or support." *Components for Certain Environmentally-Protected LCD Digital Displays & Prods. Containing the Same*, 337-TA-1349, ID at 291-92 (Apr. 16, 2024) (EDIS Doc. ID 821125) ("*Certain Environmentally-Protected LCD Displays*") (rejecting Samsung's EDI contentions in that investigation); *see also Certain Replacement Automotive Lamps*, Inv. No. 337-TA-1291, Comm'n Op. at 27 (Mar. 7, 2024) (EDIS Doc. ID 816597) ("*Certain Replacement Automotive Lamps*") ("[A]ggregating investments in articles that *are* protected by a specific patent with investments in articles that *are not* protected by that patent precludes meaningful consideration of the relevant investments."); *Digital Video-Capable Device & Components Thereof*, Inv. No. 337-TA-1224, ID at 140-41 (Oct. 21, 2021) (EDIS Doc. ID 758903) ("*Digital Video-Capable Device*") (critiquing revenue-based allocation because it did not exclude investments in non-qualifying activities).

Samsung relies on expenses (categorized through black-box [REDACTED] [REDACTED]) without showing how they relate to the DI Products. More evidence is required to allow the Commission to cull unrelated or marginally related expense groupings. *See, e.g., JDX-0005C* at Tab 6; *JX-0016C* (Martinez) at 35:11-13 ("[REDACTED] [REDACTED]"), 58:1-13 ([REDACTED] [REDACTED]); *JX-0022C* (D. Kim) at 66:4-12 ([REDACTED] [REDACTED])

[REDACTED]). The little information about these black-box categories that Samsung did produce indicate that many should be excluded, as the examples below show and as Mr. Jarosz will testify. Samsung made no attempt to provide good-faith surveys from employees or time-based allocations within those groups, internal documentation, or the removal of suspect categories altogether. Ms. Rowe failed to consider *any* difference among the products when allocating Samsung's investments to the products. JDX-0053C (Rowe) at 67:6-72:6.

For example, Samsung counts investments that are cellular- or carrier-exclusive indiscriminately toward all DI Products, even though the DI Rings and many DI Watches have no cellular functionality and no relationship with carriers. RX-0292.78 (69% of smart watches generally are "Bluetooth-only"); JX-0016C (Martinez) at 22:21-23:14, 24:9-15, 25:8-20, 27:15-17. Samsung admits that many of the investments (counted toward all products) are specific or almost entirely related to [REDACTED]: For example, Samsung [REDACTED] [REDACTED]. JX-0016C (Martinez) at 122:6-123:19 ([REDACTED] [REDACTED]). [REDACTED]. Compl., Ex. 11 (Martinez Decl.) (EDIS ID 2463878) (describing [REDACTED] [REDACTED]); JX-0016C (Martinez) at 123:22-124:17 ([REDACTED] [REDACTED]). Samsung's [REDACTED] are related to the DI Products primarily by training carriers. JX-0016C (Martinez) at 133:12-134:8, 137:5-18 ([REDACTED] [REDACTED] [REDACTED]); JDX-0053C (Rowe) at 179:19-180:1, 181:3-182:14 ([REDACTED]). Further, [REDACTED] directed to [REDACTED]. JX-0016C (Martinez) at 148:11-149:8, 153:3-154:22; JDX-

0053C (Rowe) at 196:15-197:15. By counting investments in these efforts toward the DI Ring and all DI Watch products, Samsung knowingly misallocates and overcounts—even while also knowing that many of its non-DI Products (such as other high-end smartphones) make extensive use of the [REDACTED]. See JX-0016C (Martinez) at 33:7-34:24 (discussing phones); CX-1590C (Sheppard) at 29:16-20 (similar).

Even for those [REDACTED] that may relate to at least some of the DI Products, it is improper to allocate those investments to *all* of the DI Products, which Samsung does. As an example, many [REDACTED] appear connected to functionalities, such as [REDACTED] which are unrelated to the DI Ring (which has no ability to load apps or coordination with many apps) or DI Watch (which has a different ability to load apps than the smartphone). JX-0016C (Martinez) at 103:17-104:7 ([REDACTED] [REDACTED]); 103:21-105:4 (admitting [REDACTED] [REDACTED]); 95:20-96:10 (referring to [REDACTED] [REDACTED] [REDACTED]); JDX-0053C (Rowe) at 187:16-188:5 (admitting [REDACTED] [REDACTED]), 190:4-19 ([REDACTED] [REDACTED]); 190:20-191:8 ([REDACTED] [REDACTED]), 192:7-22 (did not know or consider whether t [REDACTED] [REDACTED]) .

Separately, many [REDACTED] that Samsung relies on clearly have *no* connection with *any* of the DI Products. After all, it would be unlikely that all [REDACTED] involved in SEA's mobile products, service and repair, and content and services [REDACTED] are related to the handful of DI

Products. JDX-0005C at Tabs 6, 11-12; *see also*, e.g., JDX-0053C (Rowe) at 155:9-158:22 (unable to confirm whether Mr. Martinez explained the activities [REDACTED] [REDACTED]); JX-0016C (Martinez) at 105:17-24 (unable to explain how [REDACTED] [REDACTED]); 101:7-16 (would not be able to [REDACTED] [REDACTED]). But Samsung's DI contentions rely on an unjustified assumption that each [REDACTED] has expenses attributable to the DI Products. JX-0016C (Martinez) at 106:7-15 (Samsung relied on all [REDACTED] equally to claim DI investments); JDX-0053C (Rowe) at 142:15-143:8 (testifying that she "[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]"), 158:18-22 (did not agree that [REDACTED] [REDACTED]), 168:11-29 (relying on [REDACTED] [REDACTED]), 177:18-178:16 (admitting that if there were evidence that certain [REDACTED] did not involve the DI Products, those expenses should be excluded from the claimed DI investments).

Samsung failed to allege, much less prove, that all activities covered by [REDACTED] [REDACTED] “are connected to the articles that are protected by the asserted patents in the context of the realities of the marketplace.” *Certain Active Matrix Panels*, Comm’n Op. on Remand at 18 (Apr. 9, 2025) (EDIS ID 848296) (rejecting investments by SEA in the “Galaxy DI Products” there); *id.*, ID at 178-81 (Nov. 15, 2024) (EDIS ID 838816) (rejecting a sales-based allocation that was further allocated by “work correlated specifically to materials used” in the DI Products because the evidence did not show sufficient connection to the DI Products and likely included “non-qualifying investments”); *see also Certain Magnetic Tape Cartridges & Components Thereof*, Inv. No. 337-TA-1058, Comm’n Op. at 48 (Apr. 9, 2019) (EDIS ID 672595). Ms. Rowe heavily cites an hour-

long conversation she had with Mr. Martinez after his deposition. JDX-0053C (Rowe) at 24:1-4. But she confirmed the relevance of (only) [REDACTED]. JDX-0053C (Rowe) at 164:2-15, 167:11-168:10; 164:16-165:19 (testifying she learned specific information from Mr. Martinez about [REDACTED]). At his deposition, Mr. Martinez could not identify which [REDACTED] were unrelated to the DI Products (JX-0016C at 94:23-96:18) could not identify whether the [REDACTED] relates to any DI Product (*id.* at 99:3-100:13).

Mr. Jarosz will testify that even if Samsung finds that a sales-based allocation approach is sufficient in the ordinary course of business to meet auditing requirements, those standards are different from the Section 337 standard, which requires a sufficient nexus between claimed expenses and each DI Product. He will further testify that allocations used to comply with external financial reporting standards are particularly inapplicable here because of inaccuracies for product-specific costs, and SEC's allocation is used across SEC globally for all products, resulting in errors from substantial cross-subsidization and distortions that limits its utility for measuring SEA's investments in the DI Products pursuant to Section 337. *See, e.g.*, JX-0022C (D. Kim) at 91:9-92:4, 94:18-95:2 ([REDACTED]). Moreover, Samsung does not claim that the sales-based allocation it used to apportion its claimed investments is the same as the allocation it uses in the ordinary course of business (and it does not appear to be). *Id.* at 66:20-67:7 ([REDACTED]).

b) Cherry-Picked Base

Mr. Jarosz will also testify that because the [REDACTED] are not limited to mobile products, the base of any sales-based allocation should be SEA's total, not just mobile, revenue. SEA's operations encompass diverse product areas, including mobile products, televisions,

computers, and home appliances. *See* JX-0016C (Martinez) at 98:3-10; CX-1590C (Sheppard) at 19:5-11. Mr. Martinez testified that at least some of [REDACTED] support non-mobile products. JX-0016C (Martinez) at 130:10-131:7, 131:21-132:5, 161:3-17 (admitting that the [REDACTED] [REDACTED]), 162:8-164:17 (admitting [REDACTED] [REDACTED]).

Mr. Jarosz will testify that SEA's 2025 revenue was [REDACTED], almost [REDACTED] its [REDACTED] revenue. RX-0390.66. Allocating SEA's expenses according to its full revenues, not just [REDACTED] revenues, reduces the claimed investments by nearly [REDACTED]%. JDX-0005C at Tab 13.

c) Calculation Error in DI Ring Allocation

Mr. Jarosz will testify that Ms. Rowe's allocation for the DI Ring in 2024 overstates the investments because her calculation erroneously assigned a full year of investment to six months of sales (effectively assuming twelve rather than six months of sales in 2024). A corrected allocation reduces Ms. Rowe's labor and capital investments for the DI Ring by [REDACTED]% in 2024 and [REDACTED]% overall. JDX-0005C (Jarosz) at Tabs 14-16.

C. Plant & Equipment Investments Are Overstated

Samsung identifies the unallocated rent amount for [REDACTED] facilities that "house the DI Activities." RX-0959C.20-22; *see also* JX-0016C at 156:24-157:3 (Martinez) (testifying that these [REDACTED] facilities are those that Samsung is relying on for DI). This is less than [REDACTED] of the "over [REDACTED] facilities across the U.S." operated by SEA that Samsung touted. RX-0959C.8.

And there is no evidence that these [REDACTED] facilities house qualifying activities for the DI Products or how much of those activities are performed. *Digital Video-Capable Device*, ID at 140 (rejecting allocation that included investments in facilities where no qualifying activities were performed). Samsung admitted that many facilities are primarily for [REDACTED]

[REDACTED]: for example, SEA’s headquarter office in New Jersey is primarily related to [REDACTED]

[REDACTED]. CX-1590C at 78:1-79:4; *see also* JX-0016C (Martinez) at 158:2-7 (agreeing “[REDACTED]”).

Ms. Rowe presents different investment amounts in Exhibit 2.0 of her report with allocated versions, citing CX-1469C as the source. JDX-0002C (Rowe); *see also* RX-0959C.22-25. The “Total” numbers in the summary below correspond to the expenses Ms. Rowe collected from those [REDACTED]. These are summarized below:

	2022	2023	2024	Jan.-Nov. 2025	Total
[REDACTED]	[REDACTED]				
Total					
DI Phone					
DI Watch					
DI Ring	[REDACTED]				

These appear to be from the “Raw Data” tab in CX-1469C, filtering to the [REDACTED] [REDACTED] that Ms. Rowe believed (without explanation) were related to plant and equipment. She did not identify the connected facility or the purpose of any equipment or payments. *See Digital Video-Capable Device*, ID at 139-43 (rejecting EDI contentions where allocations do not filter out unrelated locations).

D. Labor & Capital Investments Are Demonstrably Overstated

Samsung claims qualifying investments for labor and capital in Tables 18-23 of its contentions, which do not specifically identify the source of the reported data. RX-0959C.31-39. Ms. Rowe presents different investment amounts for each [REDACTED] in Exhibit 3.0 of her report with her allocations, citing CX-1469C as the source. JDX-0002C (Rowe). She also

presented “comprehensive” labor and capital investments, which are the plant and equipment investments added to the labor and capital investments. JDX-0002C at Ex. 9.0. Accordingly, where collapsing subsection (A) and (B), if Samsung fails to prove significant investments for labor and capital, it necessarily fails to prove significance for plant and equipment. Ms. Rowe further presented an alternative with these “comprehensive” data [REDACTED] JDX-0002C at Ex. 10.0. The results of these various sums are below, with the “Total” numbers corresponding to expenses Ms. Rowe reported from the [REDACTED]

	2022	2023	2024	Jan.-Nov. 2025	Total
[REDACTED] Total					
DI Phone					
DI Phone (comprehensive)					
DI Phone (comprehensive “excluding marketing”)					
DI Watch					
DI Watch (comprehensive)					
DI Watch (comprehensive “excluding marketing”)					
DI Ring					
DI Ring (comprehensive)					
DI Ring (comprehensive “excluding marketing”)					

When determining which expenses to include as labor and capital, Ms. Rowe did not apply the definition of capital, “a stock of accumulated goods,” required by the Federal Circuit. *Lelo Inc.*

v. Int'l Trade Comm'n, 786 F.3d 879, 883 (Fed. Cir. 2015). At her deposition, she could not explain what she understood “capital” to mean except “facility-related investments,” and that the non-facility costs she included in that category are labor. JDX-0053C (Rowe) at 237:12-239:13. Mr. Jarosz will testify that Ms. Rowe’s calculations improperly include expenses such as [REDACTED]

[REDACTED]

[REDACTED] without showing they are employment of labor or capital. *See Certain Collapsible Sockets for Mobile Elec. Devices & Components Thereof*, Inv. No. 337-TA-1056, Comm’n Op. at 16-19 (July 9, 2018) (EDIS ID 649819). For example, Mr. Jarosz will opine that the \$ [REDACTED] for “[REDACTED]” that Ms. Rowe included in all her analyses are not qualifying employments of labor or capital because they are liabilities. JDX-0005C at Tab 10, row 296. Similarly, marketing expenses for purchases of things such as “[REDACTED]” and “[REDACTED]” and incidentals do not qualify under subsection (B). JDX-0005C at Tab 10; *see Lashify, Inc. v. Int’l Trade Comm’n*, 130 F.4th 948, 961-62 (Fed. Cir. 2025) (holding that legislative history indicates that (B) excludes “simply purchasing advertising” that is not “employing the inputs” used for marketing functions); *Certain Active Matrix Panels*, ID at 178 (Nov. 15, 2024) (holding that off-the-shelf purchases are not qualifying investments without evidence connecting those purchases to an employment of labor or capital). Mr. Jarosz will testify that other categories set out in Tab 10 of his report have not been shown to be capital, and excluding just those would reduce Ms. Rowe’s claimed labor and capital investments by up to [REDACTED]%. JDX-0005C. Ms. Rowe did exclude some expenses in her [REDACTED] alternative summation, but without addressing how the remaining expenses relate to employment of labor and capital. *See* JDX-0002C at Exs. 1.2, 10.1.

Further, Mr. Jarosz will testify that industry benchmarks are evidence that Ms. Rowe overcounted labor investments. *See* JDX-0005C at Tabs 8-9 (Rowe suggesting annual investments between [REDACTED] for Samsung relating to the DI Products whereas Oura’s analogous investments (rounded) were [REDACTED]).

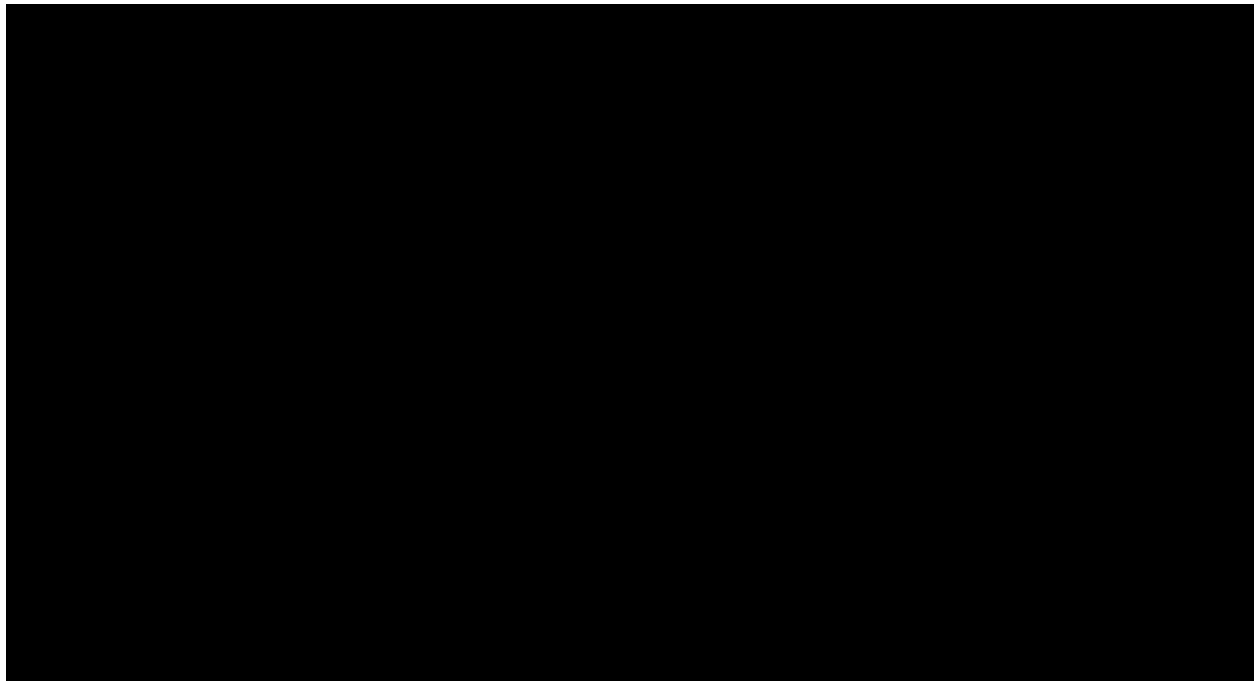
E. Lack of Significance

Samsung failed to show that its claimed investments (which improperly overcount investments, as set out above) are significant relative to relevant metrics. *Lelo*, 786 F.3d at 883; *see also Certain Printing and Imaging Devices & Components Thereof*, Inv. No. 337-TA-690, Comm’n Op. at 26 (Feb. 17, 2011) (investments must be “assessed with respect to the nature of the activities and how they are ‘significant’ to the articles protected by the intellectual property right”). Mr. Jarosz will testify that Samsung’s reliance on cherry-picked data pulled from one U.S.-based subsidiary precludes a “review of all relevant considerations” and the “context dependent” analysis the Federal Circuit requires. *Wuhan Healthgen Biotechnology Corp. v. Int’l Trade Comm’n*, 127 F.4th 1334, 1339 (Fed. Cir. 2025). Samsung does not “articulate why [any] proffered comparison was useful in determining quantitative significance of [its] investments *as to the products at issue....*” *Certain Power Converter Modules and Computing Systems Containing the Same*, Inv. No. 337-TA-1370, Comm’n Op. at 94 (Feb. 26, 2025) (EDIS ID 844518); *Certain Environmentally-Protected LCD Displays*, ID at 289 n.77 (complainant has burden to show that comparisons are “relevant...for determining significance”).

Further, Mr. Jarosz will testify that the significance ratios Samsung generated for the more probative metrics are generally below the [REDACTED] benchmark the Commission consistently finds is a minimum for significance. *See Lelo*, 786 F.3d at 882, 885; *Certain Electronic Candle Products and Components Thereof*, Inv. No. 337-TA-1195, Comm’n Op. at 18 (September 13, 2021) (EDIS ID 751478); *Certain Foodservice Equipment and Components Thereof*, Inv. No. 337-TA-1166,

ID at 90 (June 4, 2021) (EDIS ID 745962). An investigation recently refused to grant summary determination (which was unopposed) where Samsung’s “raw numbers” were high but were not significant because they were “less than six percent of Samsung’s total global investments in labor and capital associated with the Samsung DI Products” and “[l]ess than six percent is so low.” *Certain Elec. Devices, Including Mobile Phones, Tablets, Laptops, Components Thereof, and Prods. Containing the Same*, Inv. No. 337-TA-1376, Order No. 32 at 24 (July 12, 2024).

Mr. Jarosz will also testify that Ms. Rowe’s own calculations show [REDACTED] investments, particularly in view of the growing smart ring, smartwatch, and smart phone industries. *See* RX-0290.28; RX-0291.25; RX-0292.23; JX-0016C (Martinez) at 29:15-22; JDX-0053C (Rowe) at 95:18-22, 101:8-16, 106:2-10; JDX-0002C at Exs. 1.0-1.1, 9.0-9.1. [REDACTED] in investments show lack of significance in the domestic industry. *Lelo*, 786 F.3d at 883. For example, Mr. Jarosz will testify that the evidence shows [REDACTED], including as represented in the following figure he created (independent of SEA’s [REDACTED], addressed further below):



1. Samsung's Proposed Comparisons

Ms. Rowe proposes several comparisons to show significance, but the evidence will show that they instead show *insignificance*.

a) Investment-to-Revenue

Ms. Rowe compares the claimed investments to SEA's U.S. mobile product revenues. JDX-0002C.96. No ratio is above █% (except the DI Ring, which was improperly allocated), and Mr. Jarosz will testify that Ms. Rowe's own ratios show insignificance. *Id.* at .96 and Ex. 9.0; *see also id.* Ex. 9.1 (showing ratios of █ for plant & equipment investments). Ms. Rowe presents no theory for how her comparisons show significance.

Mr. Jarosz will also testify that this comparison metric is not probative of significance here for the reasons explained by Commissioner Schmidlein in *Certain Replacement Automotive Lamps*, Comm'n Op. at 44-46: when claimed investments are estimated through sales-based allocations, dividing the investments by the DI Products' revenues (for the significance ratio) cancels out the patent-specific information, rendering it useless for evaluating the significance of investments in a given patent-protected product. This is why Ms. Rowe's proposed investment-to-revenue ratios are the same (█%) for the DI Phones and DI Watches and *would* be identical for the DI Ring without the error identified above. Mr. Jarosz will testify that Samsung did not mitigate this issue by using worldwide rather than U.S. revenue.

Samsung never grapples with how █ its claimed investments (especially for the DI Watches and Ring) are compared to Samsung's overall revenues. RX-0390.50 (2025 revenue for SEC was █); JX-0016C (Martinez) at 104:8-15 (admitting that █). Mr. Martinez testified that Samsung's business is █ relatively insignificant. JX-0016C (Martinez) at 172:6-16. Samsung also does not compare its

claimed investments to SEA's total revenues (rather than the cherry-picked mobile revenues), which is more appropriate given the cross-fertilization of SEA's expenses across different product groups (as discussed above regarding allocation). *See* JDX-0005C at Tab 13.

b) Investment-to-COGS

Ms. Rowe opined that comparing U.S. COGS to the claimed investments is a relevant measure of "the context of foreign costs," which Mr. Jarosz will testify is not. JDX-0002C.102. She compares the labor and capital (comprehensive) with SEA's U.S. COGS, showing ratios of [REDACTED] (DI Phone), [REDACTED] (DI Watch), and [REDACTED] (DI Ring). JDX-0002C.103 and Ex. 9.0. Mr. Jarosz will testify that the low percentages of the DI Phone and DI Watch investments show they are not significant, and the DI Ring is affected by Ms. Rowe's accounting error (discussed above). She also compares the DI Product plant and equipment investments to SEA's U.S. COGS costs. JDX-0002C.97. The ratios are less than [REDACTED] showing no significance. *Id.* at 97 and Ex. 9.1.

Mr. Jarosz will testify that comparing the claimed investments to U.S. COGS (as Ms. Rowe does) has a structural deficiency because the claimed investments (as allocated) were generated through revenue data, meaning that any variation in this ratio is driven by differences in the markup above COGs, such as extraneous factors including pricing strategy, demand conditions, or competitive market dynamics. He will further testify that Ms. Rowe's use of a U.S. COGS benchmark overstates the relative significance of U.S. investment, whereas a more appropriate comparison would be using worldwide COGS considered alongside measures of worldwide activity (discussed more below).

He will explain that the COGS comparison used does not capture foreign manufacturing costs or other costs related to the DI Products, such as R&D, design, engineering, and testing, because the COGS reflects only the [REDACTED] to SEA for goods imported into and sold within the U.S. JX-0016C (Martinez) at 80:3-25; JX-0022C (D. Kim) at 100:15-101:3. Samsung did not

provide evidence of what non-U.S. expenses are accounted for in COGS, and the COGS benchmark is subject to Samsung's (unknown) internal sales-based allocation. *See* JX-0016C (Martinez) at 80:3-81:5, 52:4-12 ([REDACTED]), 83:7-11. Samsung also did not produce (or acknowledge) an agreement with SEC concerning SEA's purchase of the DI Products, which could explain how the COGS number is generated or modified. JDX-0053C (Rowe) at 61:15-63:7 (admitting [REDACTED]). To the extent Samsung says that Oura has not shown any evidence to the contrary, that is neither factually true nor legally proper—it is Samsung's burden to prove its case, not Oura's.

Although Ms. Rowe compares her COGS ratio to Oura's efforts in a separate investigation, Mr. Jarosz will testify that Oura showed that nearly all of its activities were related to the DI Products, and Oura's significance metrics did consider worldwide (not just U.S.) COGS.

c) Investment-to-OPEX

Ms. Rowe compares the DI Product plant and equipment investments to SEA's operating costs for the DI Products. JDX-0002C.97. The ratios are [REDACTED] (DI Phone), [REDACTED] (DI Watch), and [REDACTED] (DI Ring), showing they are not significant. *Id.* at 97 and Ex. 9.1. She also compares the labor and capital (comprehensive), with ratios of [REDACTED] (DI Phone), [REDACTED] (DI Watch), and [REDACTED] (DI Ring), which are substantially different than her other measures of significance, indicating that these are not probative. *Id.* at 98 and Ex. 9.0. Mr. Jarosz will testify these do not show significance.

The U.S. OPEX numbers Ms. Rowe relies on are not detailed reports of the operating expenses for each product; rather, they (like COGS) are another result of black-box sales-based allocations performed internally by Samsung that it failed to describe. JDX-0002C.96 n. 566; JX-0016C (Martinez) at 82:4-23, 83:7-11; JX-0022C (D. Kim) at 65:23-67:18 (testifying that [REDACTED]); JDX-0053C (Rowe) at 229:9-18, 241:12-245:15 (unable to explain how [REDACTED])

For example, Samsung failed to explain whether its internal allocation of OPEX was based on unit sales or dollar sales, and if dollar sales are used, what measure (e.g., gross sales or net revenue) served as the allocation base. Nor does the record establish whether different SEA cost centers used different allocation-factor bases depending on the scope of the work performed (e.g., revenues for mobile-only cost centers or those inclusive of other product groups).

It is further not clear which SEA investments (although they are only SEA's costs) are counted within operating expenses, so the comparison is not useful. JX-0022C (D. Kim) at 57:23-62:21 (no knowledge of [REDACTED], [REDACTED], 101:7-101:20. Accordingly, as with the Revenue and COGS ratios, they are not reliable probes of investments that are also generated through sales-based allocations. And the OPEX column is for limited SEA operating expenses only, excluding [REDACTED], [REDACTED] that are related to the COGs. *See* JX-0016C (Martinez) at 51:20-52:12, 81:22-24.

As a result, as Mr. Jarosz will testify, the comparison is not useful and cannot be fully evaluated or rebutted. Further, this comparison merely shows DI Product investments compared with SEA's (estimated) operating expenses for those products—and comparing claimed investments in the DI Products to operating expenses for the DI Product expenses does not show the necessary context for SEA's investments. At the very most, this comparison shows the relative significance of U.S. commercialization costs that qualify as plant and equipment or labor and capital under Section 337 to the U.S. commercialization costs that do not. So it cannot probe whether the investment is significant to the DI Product, because the category of costs (which could be as trivial as putting a manual in a box) that make up SEA's qualifying investments are compared

with the same category of costs (e.g., the administrative overhead for the printers and the box shipments). JX-0016C (Martinez) at 148:5-149:8 (“[REDACTED]”). Ms. Rowe does not provide the context to show why this comparison shows that the claimed investments are significant under Section 337.

d) Investment-to-All Mobile Investments

Ms. Rowe compares the DI Product plant and equipment investments to SEA’s mobile plant and equipment investments. JDX-0002C.99. The ratios are [REDACTED] and [REDACTED] (DI Phone) and a combined just [REDACTED] and [REDACTED] (DI Watch and Ring, which is improperly aggregated and below a reasonable significance threshold) for 2022 and 2024, respectively. *Id.* at 99 and Ex. 9.1. She also compares the DI Product labor and capital (comprehensive) investments to SEA’s mobile (comprehensive) investments. JDX-0002C.100. The ratios are [REDACTED] and [REDACTED] (DI Phone) and a combined [REDACTED] and [REDACTED] (DI Watch and Ring, which is improperly aggregated and below a reasonable significance threshold) for 2022 and 2024, respectively. *Id.* at 100 and Ex. 9.0.

As discussed for the investment-to-revenue ratio, which is not probative here because it relies on factors that are baked into the sales-based allocation, this particular comparison is not especially meaningful because it is comparing estimated investments with the amount excluded from that estimate, all of which is just a function of which products sold well. But Ms. Rowe’s comparison does show that the DI Products’ revenue allocation factors (JDX-0002C at Ex. 5.0), which is their revenue compared to the [REDACTED], are larger than their investment allocation factors, which is their investment compared to non-DI mobile product investments, indicating that the DI Products have a lower investment-to-revenue ratio than other products [REDACTED].

e) U.S.-to-Worldwide Revenues

Ms. Rowe compares SEA revenues from the DI Products with SEA’s overall U.S. mobile product revenues. JDX-0002C.92. But the DI Watch is only [REDACTED] with the DI Ring at only [REDACTED]

Id. She also compares SEA’s U.S. revenues from the DI Products with Samsung’s global net revenues from those products. JDX-0002C.105. Revenue comparison does not show significance. *Certain Soft Projectile Launching Devices, Components Thereof, Ammunition, and Products Containing Same*, Inv. No. 337-TA-1325, Comm’n Op. at 31-32 (Dec. 18, 2025) (EDIS ID 867953) (“*Certain Soft Projectile*”). Mr. Jarosz will also testify that the revenue metrics for the DI Watch and DI Ring are de minimis, and that the marked declines in the DI Products’ revenue signals decreasing significance. Ms. Rowe’s global revenue comparison at most shows that the U.S. is one of Samsung’s largest markets for the DI Products, but it does not show the significance of U.S. investments, and further suggests that other markets (including Korea) may be larger and have larger localization and commercialization investments than SEA. JX-0016C (Martinez) at 38:2-10 ([REDACTED]).

f) Headcount

Ms. Rowe applied her allocation factor to the employee count within the [REDACTED] groups, generating a total of [REDACTED] employees allegedly doing work on the DI Products by November 2025: [REDACTED] for the DI Phone, [REDACTED] for the DI Watch, and [REDACTED] for the DI Ring (although these total [REDACTED]). JDX-0002C.101-02. In sum, her (overinclusive) allocation attributes [REDACTED] doing work on the DI Ring and just [REDACTED] doing work for the DI Watch in 2025—among the [REDACTED] SEA employees that Ms. Rowe opined did work on mobile products. JDX-0002C (Rowe) ¶224 n.589. Using Ms. Rowe’s math (*id.*), this would be [REDACTED] for the DI Watch and [REDACTED] for the DI Ring. This is not significant in any context. And [REDACTED] employees ([REDACTED]) is not a significant number when compared to SEA’s workforce, even if limited to the [REDACTED] employees that are allegedly working on the DI Phones.

Further, Mr. Martinez testified that the spreadsheet Ms. Rowe relied on does not provide an accurate estimate of employees. JX-0016C (Martinez) at 110:5-111:10. Ms. Rowe also does

not explain how much of their work is related to the DI Products because she assigned them purely based on [REDACTED] and a blanket sales-based allocation, and there is no evidence of time-based or good-faith allocations. JDX-0002C at Ex. 9.3; *see also* JX-0016C (Martinez) at 33:2-4 ([REDACTED]), 26:17-25 (employees within groups may “[REDACTED]”). Further, Mr. Jarosz will testify that Ms. Rowe’s own presentation of allocable headcount shows a [REDACTED] in investments over the nearly four years accounted for, which is evidence of *insignificance*:

	Dec. 2022	Dec. 2023	Dec. 2024	Nov. 2025
DI Phone	[REDACTED]			
DI Watch				
DI Ring				
Total				

2. Comparisons Samsung Failed to Present

Although the Commission has not found any one comparison dispositive, a complainant must show sufficient context to prove a significant EDI. *Wuhan Healthgen Biotechnology Corp. v. Int’l Trade Comm’n*, 127 F.4th 1334, 1339 (Fed. Cir. 2025). Samsung failed to use comparisons showing this fuller context, and in many cases failed to provide evidence necessary to do them.

a) Comparisons to Investments in Other Products

Samsung did not compare its claimed investments with those in non-DI Products. There is no evidence of SEA’s (or Samsung’s) investments relating to products outside the mobile services group, such as home appliances, computers, and televisions. For example, Samsung touted its more than [REDACTED] U.S. facilities, but admits that just [REDACTED] are related—in any way at all—to the DI Products (without describing how). RX-0959C.8. This comparison would show (as Ms. Rowe’s own sales-based allocation suggests) that at least SEA’s investments in the DI Watches and DI Rings are a

“minor component” of SEA’s business. *Certain Environmentally-Protected LCD Displays*, ID at 289 (Apr. 16, 2024) (EDIS ID 821125). Samsung also did not explain how the DI Ring and DI Watch investments could be considered significant in light of its DI Phone investments.

b) Comparisons to Foreign Metrics

The Commission recognized that a company—even if its whole enterprise is solely directed toward a DI product—“may not have a domestic industry if the bulk of its investment are overseas.” *Certain Wearable Elec. Devices with ECG Functionality & Components Thereof*, Inv. No. 337-TA-1266, Comm’n Op. at 24 (Jan. 20, 2023) (EDIS ID 788332). There is no dispute that the bulk of Samsung’s work related to the DI Products is done overseas.

Mr. Jarosz will testify that worldwide metrics are more appropriate than U.S.-only metrics. Samsung is a global company, the DI Products are sold globally, and SEA is just one of many local commercialization arms, suggesting that worldwide comparisons would be helpful to understand the significance of SEA’s investments in the DI Products. RX-0390.58-65 (reciting wholly owned subsidiaries all over the world); *see also* JX-0022C (D. Kim) at 91:9-92:4, 94:18-95:2 (testifying that [REDACTED] [REDACTED]); CX-1469C (“[REDACTED] [REDACTED]”).

Mr. Jarosz will testify that the following worldwide benchmarks show that SEA’s investments in the DI Products are not significant (JDX-0005C at Tabs 17-25, showing full calculations):

- Claimed investments compared with worldwide revenues from sales of the DI Products:

PUBLIC VERSION

	Plant & Equipment	Labor & Capital	Labor & Capital (comprehensive) (per patent group rather than per product)
DI Phone			
DI Watch			
DI Ring			

- Claimed investments compared with worldwide COGS for the DI Products:

	Plant & Equipment	Labor & Capital	Labor & Capital (comprehensive) (per patent group rather than per product)
DI Phone			
DI Watch			
DI Ring			

- Claimed investments compared with worldwide OPEX allocated to the DI Products:

	Plant & Equipment	Labor & Capital	Labor & Capital (comprehensive) (per patent group rather than per product)
DI Phone			
DI Watch			
DI Ring			

The Commission has recognized that comparing domestic investment to worldwide revenues is probative, including because it indicates the domestic value-add and any associated profit margin. *See Certain Carburetors & Prods. Containing Such Carburetors*, Inv. No. 337-TA-1123, Comm’n Op. at 18 (October 28, 2019) (EDIS ID 692517); *Certain Electronic Candle Products*, Comm’n Op. at 18 n. 22 (Kearns, C.).

Samsung also admits that some SEA activities impact the DI Products outside of the U.S. *See* JX-0016C (Martinez) at 37:12-14 ([REDACTED]), 54:12-25 ([REDACTED]), 144:7-21 ([REDACTED]). Moreover, [REDACTED]. JX-0016C (Martinez) at 43:2-44:5, 44:15-46:7 ([REDACTED]). Accordingly, comparing SEA’s investments to just U.S. revenue overestimates the comparative investment and does not reflect significance.

c) Comparisons to Investment Counterparts

Samsung has also failed to show significance for its subsection (A) and (B) investments by comparing them with foreign investments in those subsections. *See Certain Crafting Machines & Components Thereof*, Inv. No. 337-TA-1426, Comm’n Op. at 15 (July 16, 2026) (EDIS ID 888252) (finding significance where domestic investments were “significantly greater than its corresponding foreign investments in the same categories of activities”); *Certain Video Capable Elec. Devices, Including Computers, Streaming Devices, Televisions, Cameras & Components and Modules Thereof*, Inv. No. 337-TA-1379, ID at 97 (Jan. 29, 2025) (EDIS ID 842988) (comparing Samsung’s global R&D investments with its domestic R&D investments). There is no evidence of investments made by Samsung’s commercialization counterparts to SEA or counterparts to SEA’s [REDACTED]. *See, e.g.*, JX-0016C (Martinez) at 37:1-21 (admitting [REDACTED]).

[REDACTED], 41:12-42:23
(identifying some counterparts to SEA).

Further, there is no evidence in the record that allows the Commission to compare the claimed investments with other plant & equipment or labor & capital efforts that contribute to the DI Products (including design, development, manufacture, etc.). Samsung admits that everything related to the DI Products, from design through manufacture, is done outside the U.S. *See* JX-0016C (Martinez) at 50:14-51:19 ([REDACTED]
[REDACTED]); JDX-0002C (Rowe) ¶¶205-06 ([REDACTED]
[REDACTED]). There is no evidence in the record of expenses incurred by Samsung's foreign cost centers (or even what those cost centers are). But to assess the "full picture" of Samsung's expenses, without seeing just a subset of cherry-picked expenses related to U.S. commercialization (which is what Samsung claims here), there must be evidence of Samsung's foreign investments, including evidence of "foreign manufacturing expenses." *Certain Crafting Machines*, Comm'n Op. at 10 n.4 (Commissioner Kearns) (warning against "a situation in which the only DI Product labor in the United States is a small amount of sales and marketing").

Samsung's comparisons to *U.S.* COGS and OPEX are not sufficient to do this at least for the reasons stated above. In addition, Mr. Jarosz will testify that simply considering U.S. COGS and OPEX is insufficient because they exclude foreign manufacturing costs allocated to DI Products sold outside the U.S. and non-manufacturing investments in the DI Products sold in the U.S., including research, design, development, engineering, project management, and any other cost that supports the DI Products that are not the U.S. commercialization costs exclusively handled by SEA. Mr. Jarosz will testify that failing to consider the non-U.S. contributions to the

DI Products will introduce significant distortions, especially when they are compared to COGS that are shrunk to apply to only U.S. sales.

Ms. Rowe also did not compare the claimed U.S. headcount to non-U.S. employees who play a role in the DI Products, making it impossible to compare and show significance for the headcount of U.S. employees. As another example, Samsung did not identify (much less provide lease information or square footage) non-U.S. properties used for activities or services related to the DI Products, making it impossible to compare and show significance for the facility expenditures and footprint in the U.S.

d) Comparisons to Marketplace Participants

Although Ms. Rowe opined on the U.S. smart watch, smart ring, and smart phone markets, she did not present any meaningful comparison with Samsung's claimed investments and the investments others in the marketplace have made. But Mr. Jarosz will also testify that Samsung's claimed investments are not significant compared to marketplace participant Oura. For example, he will testify that Oura's investments far outstrip Samsung's investments in its smart ring, including [REDACTED] U.S. facility investment in 2025 as compared with Samsung's [REDACTED] plant and equipment investment in the same year. RX-0413C. Mr. Jarosz will further testify that Samsung's U.S. labor and capital investment-to-worldwide-revenue ratios are dwarfed by Oura's analogous investment-to-revenue ratios, showing that Samsungs investments are comparatively insignificant.

3. Qualitative Significance

SEA is just the [REDACTED] for SEC. CX-1590C (Sheppard) at 13:17-22. Mr. Martinez testified that [REDACTED]
[REDACTED]. See JX-0016C (Martinez) at 50:14-51:2-19 ([REDACTED]) y

[REDACTED]; 46:8-47:13 ([REDACTED]
 [REDACTED]); JDX-0002C (Rowe) ¶205 (Mr. Martinez
 confirmed that “[REDACTED]”); RX-0519C ([REDACTED]
 [REDACTED]
 [REDACTED]); RX-0384C (Sheppard) at 120:5-121:2 ([REDACTED]
 [REDACTED]); RX-0385C (Sheppard) at 73:3-75:7 ([REDACTED]
 [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]
 [REDACTED]; JX-0021C (J. Lee) at 40:15-41:11 (“[REDACTED]
 [REDACTED]). Samsung’s other U.S. subsidiary, SRA, often works on Samsung products,
 but Samsung does not claim that it made any domestic investments in the DI Products. JX-0016C
 (Martinez) at 47:14-48:13.

Put differently, Samsung admits that the investments it claims for EDI are *only* those relating to the U.S. commercialization of products that have been researched, designed, developed, and manufactured outside of the U.S. and by non-SEA entities. And those efforts are very limited; for example, SEA [REDACTED] before their U.S. launch, demonstrating that [REDACTED]. CX-1590C at 41:13-42:4. The evidence shows that SEA makes few contributions to the DI Products (although it does [REDACTED]
 [REDACTED]). *Digital Video-Capable Device*, ID at 164 (“[T]he true question is how important the United States is to the DI Product, not how important the DI Product is to the complainant.”).

Mr. Martinez further testified that [REDACTED]
 [REDACTED]. JX-0016C
 (Martinez) at 49:20-51:1. For example, Mr. Martinez admitted that [REDACTED]

[REDACTED]. JX-0016C (Martinez) at 147:4-12; CX-1590C (Sheppard) at 93:19-95:12 (t [REDACTED]
[REDACTED]
[REDACTED]). And much of the work done for the remaining portion of products, those imported into the [REDACTED] facility, is often [REDACTED]
[REDACTED]. JX-0016C (Martinez) at 148:11-149:8, 153:3-154:22. As another example, the [REDACTED] facility mainly houses employees who work [REDACTED]
[REDACTED]
[REDACTED]. CX-1590C (Sheppard) at 97:8-98:5. Further many of the facilities are primarily just for [REDACTED]
[REDACTED]. CX-1590C (Sheppard) at 108:6-109:3; JX-0016C (Martinez) at 50:8-13 (explaining that [REDACTED]
[REDACTED]).

Further, Samsung's investments in the DI Products do not contribute to the marketplace, especially given that Samsung's interest is merely in keeping its own Galaxy ecosystem attractive to current mobile users, and not in advancing the technology or market forward generally. Martinez 1468 Dep. at 237:13-19 ("[REDACTED]
[REDACTED]"). Ms. Rowe opines that Samsung's efforts are important to the wearable market but does not tie these to the DI Products or show how Samsung's U.S. efforts support the industry. Ms. Rowe further makes comparisons to Oura that are not analogous, least of which because the core of Oura's business is the ring, and Oura is the market leader and originator of the smart ring market. *Infra* Section X.C.

Mr. Jarosz will further testify that Samsung’s claimed investments are not significant in view of the size of the relevant markets. For example, he will explain that the U.S. smartphone market is very large, which drives up the sales-based allocation factor Samsung and Ms. Rowe use, even though those large U.S. sales are attributable to non-U.S. work (including product design and development that happens in Korea). But when viewed in the broader context of the DI Products and their global chain, the real contribution by SEA is relatively minor.

Samsung claims that the domestic investments are necessary to bring the DI Products to the U.S., but Mr. Jarosz will testify that this “but-for” cause of the DI Products being available is not sufficient to prove significance. *See Certain Mobile Devices with Multifunction Emulators*, Inv. No. 337-TA-1170, ID at 182 (Mar. 16, 2021) (EDIS ID 738549) (rejecting complainant’s assumption that commercialization, without more explanation of importance, is a domestic industry). Moreover, the evidence shows that these efforts could be handled by SEC employees, who have [REDACTED]. *See JX-0016C* (Martinez) at 54:7-22 (admitting [REDACTED]); Martinez 1468 Dep. at 178:8-179:21 (testifying [REDACTED]). This is not a case where Samsung contends that the DI Products require SEA’s investments to exist; by contrast, Samsung readily admits that [REDACTED]. *Contrast with Certain Video Capable Devices*, ID at 91 (“Without [the] investments, there would be no [DI] products.”). Moreover, the significance of “necessary” claimed investments must still be compared with all other activities that are necessary for the product, such as their design, development, manufacture, and shipment. *Certain Soft Projectile*, Comm’n Op. at 42 (stating that “while design may be important for sales of a product, so are most or all other activities involved in bringing the product to market, including manufacturing.”). For

example, Mr. Jarosz will explain that SEC's R&D expenses were approximately [REDACTED] of revenue in 2025. RX-0390.50, .100.

Mr. Jarosz will also testify that a substantial portion of SEA's U.S. activities purportedly related to the DI Products would likely exist in the same form and scale even without the DI Products, which is supported by the existence of the same [REDACTED] predating many of the DI Products. *See* RX-0381C; RX-0382C.

F. Samsung's Opinions and Records Are Not Reliable

Finally, the evidence Samsung provided for assessing significance are not the most useful or reliable for doing so. For example, Samsung claims rental investments, but does not identify how the facilities support the DI Products or why the investments seem disproportionate to the activities there—including [REDACTED], and [REDACTED]. JX-0016C (Martinez) at 172:11-24 (unable to provide context for [REDACTED] facility and admitting no knowledge of how the work in [REDACTED] relates to the DI Products, if at all); 173:22-174:13 (unable to provide context about [REDACTED] and admitting on behalf of Samsung no knowledge about whether the work in the Irving facility has to do with DI Products). Further, the financial record Samsung collected for production in this case and identify as the sole source of its claimed investments under Section 337 are not reliable for that purpose and are not accompanied by evidence that could be used to explain or support those records. *See* JX-0022C (D. Kim) at 95:8-98:12 (refusing to admit that entries in RX-0391, including [REDACTED] [REDACTED] were duplicates); JDX-0053C (Rowe) at 228:15-229:8 (admitting Samsung [REDACTED] without explanation).

Ms. Rowe's opinion heavily relies on information she said she learned from SEA employee Mr. Martinez during an hour-long phone call. JDX-0053C (Rowe) at 24:1-4, 29:20-22 (could not

recall Mr. Martinez lacking knowledge on anything asked during the call), 194:14-195:7 (discussed more than one hundred expense groupings for categories outside of Mr. Martinez's normal Product Management responsibilities, in addition to reviewing "all" of Exhibits 4.0 and 5.0 with him); 34:8-11 (testifying their phone call covered the "number of costs identified line by line"). Mr. Martinez was deposed on these issues for several hours and could not provide related information to Oura's counsel. For example, Ms. Rowe testified that Mr. Martinez told her that [REDACTED]. JDX-0053C (Rowe) at 119:2-120:18. But Mr. Martinez had testified that activities within these cost centers [REDACTED] [REDACTED]. JX-0016C (Martinez) at 162:8-164:17. He further did not identify [REDACTED] as a relevant business unit (whereas he did identify [REDACTED] for mobile products) during his deposition and identified "[REDACTED] as a separate business unit from [REDACTED] [REDACTED] *Id.* at 97:5-25.

G. Conclusion

In conclusion, Samsung has failed to carry its burden to show that its claimed investments are a reliable accounting of investments in the DI Products and that they are significant relative to probative benchmarks.

X. REMEDY AND BONDING

No remedy is warranted because Samsung has failed to prove a violation of Section 337. However, the evidence will show and Mr. Jarosz will testify that any imposed remedy should have carveouts, and no bond (or a bond of 0%) is warranted during the PRP.

A. Remedy Exemptions

As Oura's witnesses will testify, a transition period and warranty exemptions are appropriate to protect the U.S. industry. Mr. Jarosz will testify that a twelve-month transition period is warranted because Oura has concrete plans to [REDACTED]

[REDACTED]

[REDACTED] See, e.g., JX-0029C (Vincent) at 22:7-20; 62:22-63:13; RX-0417C, RX-0419C; RX-0452C; RX-0263C.6-7, .9, .29; RX-0557C; JX-0030C (Schleich) at 62:21-63:1. A transition period should be entered to allow Oura to shift production

[REDACTED]

[REDACTED]

There should be a warranty carveout for the Oura rings to allow for replacements promised under warranty obligations. *Certain Personal Data and Mobile Commc'ns Devices and Related Software*, Inv. No. 337-TA-710, Comm'n Op. at 72-73 (Dec. 29, 2011) (EDIS ID 467457) (providing exemption to allow for replacements permitted under warranty obligations). As Oura's witnesses and Mr. Jarosz will testify, Oura provides at least twelve months, and often longer (based on the retailer and a grace period), of a guarantee to replace damaged or malfunctioning rings with either refurbished or newly imported rings. JX-0028C (Murrin) at 39:24-40:6 ([REDACTED]), 40:14-25 ([REDACTED]), 41:23-42:7 ([REDACTED]), 75:9-76:22 ([REDACTED]), 46:19-47:1 ([REDACTED]); RX-0456C. As Mr. Jarosz and Oura's witnesses may testify, [REDACTED] JX-0028C (Murrin) at 95:4-19; RX-0457C; RX-0458C; RX-0459C.5; RX-0460C; RX-0461C. At the time of product purchase, some consumers pay for an additional Extended Protection Plan that extends the replacement option to two or three years and expands conditions for replacement. RX-0389; RX-0388; RX-0455C.10.

Mr. Jarosz will testify that consumers lose the benefits they expected through the standard and extended warranties if they cannot receive replacement rings due to an exclusion order. *See* JX-0028C (Murrin) at 91:25-93:2, 79:14-22 (agreeing that w [REDACTED]). Mr. Jarosz will also testify that users who lose their health data because they could not quickly replace their Oura ring will be significantly harmed, and a refund—which is not Oura’s policy—would not compensate users who have lost the utility of their collected data and are not able to continue collecting that data with a substitute ring or must incur switching costs associated with starting over with another brand. *See, e.g.,* JX-0028C (Murrin) at 91:25-93:2 ([REDACTED]). Mr. Jarosz will further testify that Oura’s large partner network, number of users, algorithmic maturity and performance, and subscription model—including a prepaid annual subscription—also show the need for a warranty carveout. RX-0260C; RX-0261C; RX-0463C; RX-0464C.

B. Certification Provision

The Commission should not depart from its “standard practice” of issuing a certification provision. *Certain Composite Aerogel Insulation Materials & Methods for Mfg. the Same*, Inv. No. 337-TA-1003, Comm’n Op. at 62-63, 2018 WL 8648369, *40 (EDIS Doc. ID 637154) (Feb. 22, 2018). Mr. Jarosz will testify that the technology and economic realities of this case especially warrant a certification provision. Finally, a certification provision will ensure that no remedy should be applied against any rings that are contracted for use or purchase by the U.S. government, including Oura’s forthcoming [REDACTED] *Certain Personal Data*, Comm’n Op. at 75 (“Military and other U.S. government sales, however, are exempted from exclusion orders by statute. 19 U.S.C. § 1337(l); 28 U.S.C. § 1498(a).”); JX-0030C (Schleich) at 62:13-63:6, 64:11-22.

C. Bonding

Samsung failed to meet its burden to prove that it has experienced harm from Oura's accused products warranting a bond, and it has not proposed—much less shown—any bond amount. *See Certain Rubber Antidegradants, Components Thereof, and Prods. Containing Same*, Inv. No. 337-TA-533, Comm'n Op., at 39-40 (July 21, 2006) (EDIS ID 259120) (“[T]he complainant has the burden of supporting any proposition it advances, including the amount of the bond.”); *Certain Magnetic Tape Cartridges and Components Thereof*, Inv. No. 337-TA-1058, Comm'n Op. at 73 (Apr. 9, 2019) (EDIS ID 672595). Accordingly, no bond should be entered.

Samsung's sole assertion of harm from Oura's products is that Oura's Gen 3 and 4 rings compete with its DI Ring (which, as set out above, does not have a domestic industry and consequently is not eligible for protection by a bond). Mr. Jarosz will testify that although Samsung's DI Ring harms Oura by taking away sales, which Oura showed in the 1468 Investigation, Samsung has not shown evidence of the inverse; *i.e.*, that Samsung will be harmed enough by Oura's Gen 3 or Gen 4 ring to warrant a bond. *Certain Light-Based Physiological Measurement Devices and Components Thereof*, Inv. No. 337-TA-1276, Comm'n Op. at 122-23 (Nov. 14, 2023) (EDIS ID 808521) (no bond where complainant made only “vague assertions as to the ‘competitive status of the parties’”). As discussed in connection with EDI, any lost sales of the DI Ring to the Oura Gen 4 (which Samsung has not proven) would anyway be de minimis to Samsung given its overall U.S. revenue. Mr. Jarosz will also testify that Samsung is not the market leader and so sales that may have gone to Oura's Gen 4 may go to many of the alternatives on the market. RX-0291.138. Further, he will testify that the DI Ring is not generally a substitute for the Oura Gen 4 because the DI Ring can be used only with Android phones, which only about one-third of U.S. consumers have, and particularly designed for use by consumers with a Samsung phone. RX-0290.29, .112. Indeed, Mr. Martinez testified that one of the primary reasons behind

launching the DI Ring was to [REDACTED].
Martinez 1468 Dep. at 206:9-19 (testifying that [REDACTED]
[REDACTED]
[REDACTED]); 237:13-19 ([REDACTED]
[REDACTED]
[REDACTED]).

Moreover, Samsung addresses only the Gen 3 (no longer sold) and Gen 4 ring without contending that Oura's Gen 5 and forthcoming [REDACTED] ring (with expected commercial release [REDACTED]) will compete. Samsung has thus failed to prove that these products, which Oura's witnesses will testify will replace Gen 4, will cause harm.

Mr. Jarosz will also testify that a 0% rate is warranted even if the Commission determines that a bond is appropriate because Samsung has not shown evidence supporting a reasonable bond rate. Mr. Jarosz will testify that the traditional price differential test used to identify a bond amount that will compensate for price-based competitive advantage is not reliable here, and also that it cannot be used for setting a bond above 0% because by any reasonable calculation the price of the Oura ring is higher than the DI Ring, especially when taking into account the full cost of Oura's ownership that includes subscription pricing (which Samsung does not offer), and given the higher pricing of the Gen 5 ring (had Samsung properly identified it) and Samsung's discounts reduce the average selling price of the DI Ring to around \$[REDACTED]. JDX-0002C (Rowe) at Ex. 7.4; *see also Certain Laparoscopic Surgical Staplers, Reload Cartridges, & Components Thereof*, Inv. No. 337-TA-1167, Comm'n Op. at 81 (Dec. 20, 2021) (EDIS ID 758899) (setting the bond at 0% where the accused products were more expensive than the DI products); *Certain Cameras, Camera Sys., and Accessories Used Therewith*, Inv. No. 337-TA-1400, ID at 279 (July 10, 2025) (EDIS 857630)

(“In such circumstances, even when there is direct competition, the Commission typically sets the bond at zero percent.”). Mr. Jarosz will testify that Samsung’s licenses are too broad and otherwise unrelated to support a bond, and Samsung’s corporate witness admitted [REDACTED] [REDACTED]. JX-0018C (M. Kim) at 61:10-67:10. Mr. Jarosz will further testify that a 100% bond would be excessive and unjustified, particularly given Samsung’s failure to assert or support any reasonable bond. *Certain L-Tryptophan, L-Tryptophan Products, and Their Methods of Production*, Inv. No. 337-TA-1005, Comm’n Op. at 52-53 (Jan. 11, 2018) (finding the ALJ “correctly recommended a zero percent bond” where complainants “fail[ed] to satisfy their burden to support a 100% bond or to properly explain why a reasonable royalty or price differential would be impractical”); *Certain Elec. Devices, Including Streaming Players, Televisions, Set Top Boxes, Remote Controllers, & Components Thereof*, Inv. No. 337-TA-1200, Comm’n Op. at 42-43 (Dec. 3, 2021) (EDIS ID 757848) (imposing zero percent bond where complainant “has not carried its burden of establishing the need for a bond or the amount of any bond”). Samsung has provided no rebuttal facts or opinions. JX-0018C (M. Kim) at 67:3-10 (corporate witness unable to propose a bond).

XI. CONCLUSION

For the reasons stated above and as will be established at the evidentiary hearing, there should be no finding of violation of Section 337 against the Oura Respondents.

CERTIFICATE OF COMPLIANCE

I hereby certify that the foregoing brief complies with the word-count limit under Order No. 11 because it contains 59,948 words as calculated by Microsoft Word's word-count feature. This total excludes the captions, table of contents, table of authorities, table of abbreviations, table of asserted claims, words in figures, the word count certificate, the signature block, and the certificate of service pursuant to Ground Rule 1.7.

Dated: August 10, 2026

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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' PRE-HEARING BRIEF** was served upon the following as indicated below on August 10, 2026:

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EXHIBIT G

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The undersigned certifies that on August 24, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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